3 LAND BOUNDARY LAW

BOUNDARY LAW TERMS

1. A grantor and grantee are in the closing stages of the transfer of real property. A third party holds a grant that will be delivered only when all of the conditions for the transfer are complete. Which of the following terms describes the third party?

(A) a scrivener
(B) an escrow agent
(C) a disseisor
(D) a remainderman

Solution: The grantor places the deed with an escrow agent to be held until all conditions of the sale contract are fulfilled.

Answer is (B)

2. When the public good is involved and adequate compensation is offered, private property may be taken for public use under what principle?

(A) estoppel
(B) entitlement
(C) oyer
(D) eminent domain

Solution: Eminent domain is considered to be the assumption of dominion over private property by the state. It is one of the few limitations on a fee simple absolute.

Answer is (D)

3. What type of evidence is usually not admissible in court to cure a patent ambiguity in an instrument?

(A) parol evidence SPOKEN
(B) evidentia
(C) ewage
~~(D) parole evidence~~

Solution: Spoken evidence, or parol evidence, is not usually admissible in court to cure a patent ambiguity in a deed because it would violate the Statute of Frauds.

Answer is (A)

4. Which of the following terms includes unpaid taxes, mortgages, easements, leases, and liens?

(A) *pedis positio*
(B) escheat
(C) disseisin
(D) encumbrances

Solution: In real property, an encumbrance is a right or interest in the land of another that diminishes its value, but not to the extent that the land cannot be sold.

Answer is (D)

5. The term *fee simple absolute* describes a type of estate in real property. Which phrase defines the idea further?

(A) Subject to the condition that if something specified comes to pass, the original grantor may reenter and retake the title.
(B) If the owner dies intestate, the title reverts to the original grantor.
(C) The title is valid for a specified period of time.
(D) The title is without limitations or conditions to the owner, his heirs, and assigns.

Solution: For all practical purposes, the fee simple absolute is the greatest available interest in real property.

Answer is (D)

6. Which of the following conditions is essential for the execution of a valid deed?

(A) The deed must be recorded.
(B) There must be a perambulation of the boundary.
(C) It must be sealed with a stamp specified by the laws of the state.
✓ (D) It must have a written or printed form.

Solution: The only condition that is essential is the written or printed form. The others may occur, but are not necessary in all cases. For example, a valid consideration must be exchanged between the grantee and the grantor, but that consideration need not be money.

Answer is (D)

7. Which of the following is a revocable right in real property?

(A) an easement
(B) a license
(C) a lien
(D) an escheat

Solution: A license, such as a privilege to enter, is nonpossessory and revocable. One of the salient differences between a license and an easement is the license's revocability.

Answer is (B)

8. When an owner dies without will or heir, the state becomes the proprietor under which feudal doctrine?

(A) escheat
(B) *escobedo* rule
(C) Massachusetts rule
(D) *loquela*

Solution: When no one is available to inherit the estate of a property owner who has died intestate, escheat is exercised. The property reverts to the state.

Answer is (A)

9. Which term applies to the land over which an appurtenant easement passes?

OBVIOUS

(A) dominant estate
(B) incorporeal tenement
(C) servient estate
(D) fee tail

Solution: The servient estate is subject to rights such as ingress and egress to the dominant estate. The dominant estate is served by the servient estate.

Answer is (C)

10. Which of the following terms applies to a written instrument that appears to convey title to real property, but actually does not?

(A) quitclaim deed
(B) indenture
(C) deed of gift
(D) color of title

Solution: An instrument that, despite its appearance to the contrary, conveys no title, is said to show color of title. It cannot be so defective, however, that a person of ordinary capacity would be misled by it. Color of title has an effect in claims of adverse possession in most states. It can shorten the length of the required statute of repose when it is possessed by the claimant.

FAKE TITLE

Answer is (D)

DEEDS

11. There is one category of deed that does not imply that the grantor has title to the property, yet does pass any title the grantor may have. The grantor of such a deed will defend against any defects in that title that may have arisen through him, but not through others. What is the name of this type of deed?

(A) quitclaim deed
(B) warranty deed
(C) grant deed
(D) agreement deed

Solution: The quitclaim deed acts like a release. It conveys any interest the grantor may have, though the grantor may, in fact, have none at all.

Answer is (A)

12. Which statement is true about a deed?

(A) A deed is proof of ownership of real property.
(B) A deed is the only legal method of conveying real property.
(C) A deed must be signed by the grantee to be valid.
(D) A deed must have sufficient and legal words in its description of the property.

Solution: A deed is evidence of, but not proof of, ownership. A deed is only one of several legal methods by which title to real property may be conveyed. It need not be signed by the grantee or the county clerk, but it must be signed by the grantor to be valid. A deed must have sufficient and legal words.

Answer is (D)

13. Why is an ambiguity in a deed generally construed in favor of the grantee?

(A) The court presumes that the grantor was responsible for the language of the deed.
(B) The grantee does not sign the deed.
(C) Grantees have no title insurance.
(D) An ambiguous deed is void.

Solution: Occasionally, courts hold an ambiguous deed against the grantee—in cases involving oil leases, for example. Generally, the grantor is presumed to have been responsible for the wording of the instrument. It is therefore considered equitable to hold any patent ambiguity against the grantor.

Answer is (A)

14. An inconsistency in an instrument that is not on its face and generally can be cured by outside evidence is given what name?

(A) patent ambiguity
(B) dormant obscurity
(C) hearsay
(D) latent ambiguity

Solution: Unlike a patent ambiguity, which appears on the face of a deed, a latent ambiguity appears only in the light of information outside the deed itself. A court will generally allow a latent ambiguity to be cured by testimony, unlike a patent ambiguity.

Answer is (D)

15. A call for an adjoiner is sometimes given which of the following names?

(A) dominant tenement
(B) reservation
(C) record monument
(D) tacking

Solution: An adjoining property, whether marked by physical monuments or not, becomes a record monument when called for in a description of property. It is important to note that the entire adjoining property, and not merely the coincident line, constitutes the record monument.

Answer is (C)

16. The four corners rule is sometimes used in the interpretation of ambiguous deeds. Which statement best characterizes this rule?

(A) The granting clause may not be repugnant to the *habendum* clause.
(B) The deed description must contain clear reference to all corners of the property being conveyed.
(C) The intention of the grantor must be gathered from the language of the whole instrument rather than from separate clauses.
(D) The location of boundaries is a question of fact, but the nature of boundaries is a question of law.

Solution: The four corners rule has supplanted, to a large degree, the repugnancy doctrine. The four corners rule relies upon the entire instrument for the construction of its meaning. Formerly, some jurisdictions relied upon the idea that earlier language in a deed could not be contradicted by later language in the same instrument.

Answer is (C)

17. The intentions of the parties are considered to be the controlling consideration in construing the terms of a deed. Which of the following limits this principle?

(A) to the extent that the intentions can be understood from the language of the instrument itself
(B) as clarified by testimony
(C) regardless of contrary words in the deed
(D) unless contradicted by survey measurements

Solution: If the language of a deed is unambiguous under the rules of construction brought to bear by the court, evidence of a contrary intent is often considered immaterial. The intent that prevails is the intent expressed in the written language of the deed.

Answer is (A)

18. Which phrase is a reversion?

(A) land gradually uncovered by receding water
(B) a clause in a deed that excludes a portion of the estate that would otherwise pass
(C) land described in a deed that is not owned by the grantor
(D) an interest that will return to the grantor after some lesser estate ends

Solution: A reversion is the residue of an estate that remains with the grantor. This type of future interest usually relies on the occurrence or nonoccurrence of some specified event. For example, a life estate may revert to the grantor upon the death of the grantee.

Answer is (D)

19. Which statement best describes joint tenants?

(A) They can individually vest their interests in their own heirs and devisees.
(B) They have acquired their interests from the same conveyance.
(C) They can, upon the death of the other or others, acquire the interest left vacant at length to the last survivor.
(D) Both B and C are true.

Solution: Unlike tenants in common, joint tenants do not hold an undivided interest in the property. They cannot devise their part to their heirs; rather, upon the death of a joint tenant, the survivors acquire the interest.

Answer is (D)

20. Which statement is true of a general warranty deed?

(A) The grantor warrants the title only against acts of the grantor's own volition.

(B) The grantor limits the warranty to a five-year period.

(C) The grantor must make good on the title if it is found lacking.

(D) Both A and B are true.

Solution: Under a general warranty deed, the grantor is liable for any defects in the conveyed title, no matter when they occurred.

Answer is (C)

UNWRITTEN RIGHTS

21. Which statement correctly describes the difference in two doctrines regarding practical location of boundaries?

(A) Recognition and acquiescence differs from a parol agreement in that the former rests on an implied agreement and the latter on an actual agreement.

(B) Equitable estoppel requires that one party have knowledge of the true location of the boundary, whereas recognition and acquiescence requires that both parties be uncertain of the true location of the boundary.

(C) Establishment of a property line by a property line agreement in a location other than that described in the deed is a violation of the Statute of Frauds, but equitable estoppel is not a violation.

(D) Both A and B are true.

Solution: None of the doctrines mentioned is a violation of the Statute of Frauds. The practical location of boundaries is not seen as changing established property lines by unwritten means, but rather as a clarification of their location when it is unknown to the parties involved, in most cases.

Answer is (D)

22. Mr. Zambezi engaged a surveyor to stake the boundary of a parcel of land. He told the surveyor that he had adversely possessed the parcel for the past 11 years. The surveyor asked him if he had occupied the land under color of title. Mr. Zambezi answered yes and produced a letter that the abutting owner, Kevin Wannamaker, wrote to him 7 years ago, in which Mr. Wannamaker stated that he knew Mr. Zambezi was on his property and gave him permission to be there. What should the surveyor tell Mr. Zambezi?

(A) There is no ill will between the parties, so no adverse possession is possible.
(B) The letter does not constitute color of title, and therefore Mr. Zambezi's possession must continue another 11 years.
(C) A surveyor cannot survey land that has been stolen.
(D) Possession by permission of the record owner cannot ripen into adverse possession.

Solution: Adverse possession is possession that is hostile to the interests of the record owner. Permission given by the owner to Mr. Zambezi not only calls into question the hostility of the latter's claim, but also shows that Mr. Zambezi recognizes Mr. Wannamaker's proprietorship.

Answer is (D)

23. Several doctrines, such as adverse possession and recognition and acquiescence may, through various means, become fee interests. Which statement correctly represents the priority of these unwritten rights in the order of importance of conflicting title elements?

(A) Unwritten rights overcome rights that have arisen from deeds.
(B) All claims of property through unwritten means can only be successful against property owned by a government entity.
(C) No land can be possessed by adverse means once Torrens registration has been acquired on that property.
(D) Both A and C are true.

Solution: Answer (B) is definitely untrue because government and quasi-government entities are generally held immune to any claims by unwritten means. However, rights in property acquired by deed are inferior to successful claims

through unwritten means. Registration in the Torrens title system is one way a property owner can protect by deed his property from future claims by such means.

Answer is (D)

24. One necessary aspect of an adverse claim, sometimes said to be the essence of adverse possession, does not imply ill will. However, it indicates that the claimant denies all other claims on the property, including those of the actual owner. Which of the following terms describes this aspect of adverse possession?

(A) open and notorious possession
(B) color of title
(C) hostile possession
(D) continuous possession

Solution: Hostility in cases of adverse possession is generally manifested by such things as the erection of fences. The intent to claim and defend ownership against all others constitutes hostility in such circumstances.

Answer is (C)

25. One of the following terms is very similar to adverse possession. It applies to rights acquired by continuous use of another's property that is open and notorious, hostile, and for a statutory period. However, it differs from adverse possession in the extent of interest that the adverse user acquires. Generally, it is an easement right rather than a title to the land itself. Which of the following terms describes such rights?

(A) easement in gross
(B) negative easement
(C) dedication
(D) prescription

Solution: While it frequently has a larger meaning, prescription is the term most often applied to nonownership rights. Adverse possession, however, applies to the title to lands.

Answer is (D)

26. Under which conditions is a person immune from claims of adverse possession?

(A) lack of knowledge that property is being occupied by others
(B) insanity
(C) being underage
(D) both B and C

WOULDN'T BE ABLE TO UNDERSTAND PEOPLE ARE OCCUPYING YOUR LAND.

Solution: The premise of open and notorious possession is that the record owner should know that the property is being occupied by others. Insanity and being underage are recognized as disabilities (along with conviction to prison, in most jurisdictions).

Answer is (D)

27. A person may lose property he might otherwise own if a court finds that he acquired it by implying a boundary to be correct when he knew, at the time, that it was wrong. Which of the following terms applies to this situation?

(A) quiet title
(B) estoppel
(C) laches
(D) acquiescence

Solution: If a person becomes injured by relying on a boundary because of the assurances of someone he had reason to believe spoke with authority, the doctrine of estoppel may become involved. The relied-upon person may be estopped from any gain he enjoyed if he had knowledge of the truth and did not reveal it.

Answer is (B)

28. A surveyor finds that the line between his client and a neighbor appears to be defined by a picket fence constructed five years before the survey. However, the surveyor's measurements clearly indicate that the deed line is several feet over the fence. The surveyor places a prominent row of stakes along the deed line and calls the two property owners together to look at the situation. Even if the owners were inclined to accept the fence as their common line, some types of practical location cannot now be applied. Which of the following would be among them?

(A) parol agreement
(B) quitclaim deed
(C) recognition and acquiescence
(D) both A and C

Solution: Recognition and acquiescence is not applicable since the period of repose, 20 years by common law, has not run. A parol agreement may have been possible before the row of stakes was set, but with the stakes in place, the owners cannot agree without knowledge of the deed line's location. An exchange of quitclaim deeds is still an option.

Answer is (D)

29. The term *tacking* is sometimes applied in cases of adverse possession. Which of the following best defines this term?

(A) neglecting to assert a right to the land in question
(B) seeking the permission of the record owner to occupy land
(C) fencing the land in question
(D) adding a claimant's time of possession together with another person's to satisfy the required statutory period

Solution: Tacking, the adding together the time of occupation of more than one claimant, is sometimes permitted in order to complete the statutory period.

Answer is (D)

30. Which of the following elements is not required of a claimant to title by adverse possession?

(A) hostility
(B) open and notorious possession
(C) possession for the statutory period
(D) color of title

Solution: While color of title may shorten the length of the statutory period, it is not generally held as a requirement for a successful claim of adverse possession.

Answer is (D)

EASEMENTS

31. Gonzaga Street has not been used for 40 years. All evidence of pavement and curbs has vanished. While it still shows up on old plats of the town, the street has generally been forgotten. Essie Palisco wants her surveyor to tell her if she may extend her begonia garden into the old right-of-way without reproach. What advice might apply?

(A) An easement can be extinguished by nonuse for 5 years.
(B) The property within the right-of-way generally reverts to the fee owners adjoining it when the right-of-way is no longer used.
(C) The right-of-way is not extinguished unless the town has done so by an official act, even if the street has been out of use for 40 years.
(D) Mrs. Palisco's flowers should not extend beyond the old centerline, which belongs to her neighbor across the street.

Solution: A right-of-way is not extinguished by mere nonuse. The town must officially declare it abandoned or discontinued for the right-of-way to be truly extinguished.

Answer is (C)

TOWN MUST OFFICIALLY DECLARE THE ROAD ABANDONED

32. Which statement correctly defines the difference between an easement appurtenant and an easement in gross?

(A) An easement appurtenant is an interest in the land of another; an easement in gross is not.

(B) An easement in gross is attached to the person of the easement holder; an easement appurtenant is not.

(C) An easement appurtenant passes with the transfer of the land to which it is attached; an easement in gross does not.

(D) Both B and C are true.

Solution: An easement appurtenant is attached to the land. An easement in gross, on the other hand, is attached to the person or corporation that holds it.

Answer is (D)

33. Which of the following will not extinguish an easement appurtenant that was acquired in writing?

ABLE TO EXTINGUISH AN EASEMENT

(A) overburdening

(B) combination of the tenements in one proprietor

(C) written intent to abandon

(D) ~~revocation by the grantor~~

Solution: All the answers except (D) will extinguish an easement because a written easement is not a revocable right in property.

Answer is (D)

34. An implied easement arises from which of the following circumstances?

(A) A grantor mentions such an easement in the deed.
(B) Although unwritten, it is necessary for the reasonable use of the property.
(C) A claimant acquires the easement right by long and continuous use.
(D) A common-law dedication of a public street is omitted from a deed.

Solution: This type of unwritten easement most frequently arises when a grantor sells a portion of his property without mentioning an easement that is clearly required for the reasonable use of the parcel sold. Even though the deed makes no reference to the easement, it is presumed to exist by implication.

Answer is (B)

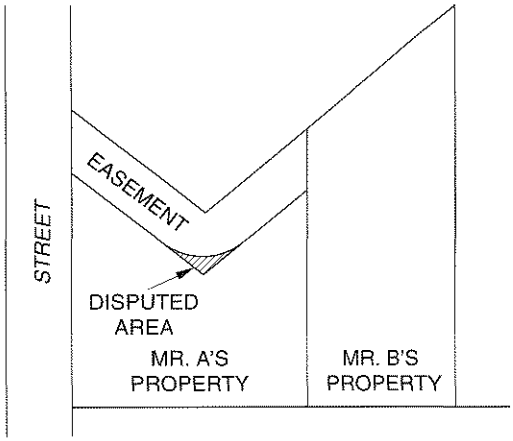
35. An easement in which the owner of the servient estate is prohibited from building any structure over 100 ft high would be called which of the following names?

(A) a negative easement
(B) a quasi-easement
(C) an easement of natural support
(D) a construction easement

Solution: A negative easement has the effect of preventing an owner of land from doing something that he or she would otherwise be entitled to do.

Answer is (A)

36. Mr. A has granted Mr. B an easement appurtenant over the northerly 20 ft of his parcel, as indicated in the illustration. A dispute over the meaning of the deed has arisen. Mr. B claims the shaded area is included in his easement; Mr. A says it is not. Which statement is most likely to apply to the situation?



(A) The disputed area is not within the easement.

(B) The description of the easement should be construed in favor of the grantee. The disputed area is probably part of the easement.

(C) The deed is subject to two interpretations. The central question is whether the disputed area is necessary for Mr. B's use of his property.

(D) The deed is void for uncertainty.

Solution: When more than one interpretation of the language in a deed is possible, the one that gives greatest advantage to the grantee will prevail. The grantor is presumed to have been responsible for the language of the deed and is therefore subject to reasonable consequences of that language.

Answer is (B)

37. Which statement correctly defines the difference between a common-law dedication and a statutory dedication?

(A) A common-law dedication of a street can occur without writing or a map while statutory dedications do not.

(B) A common-law dedication generally conveys an easement to the public while statutory dedications convey a fee.

(C) A statutory dedication is always formally accepted by the government common-law dedications are accepted by public use only.

(D) Both B and C are true.

Solution: Generally, a statutory dedication is accomplished with the filing of a map that shows the areas dedicated for public use. A common-law dedication requires no map or writing and grows from the intention of the owner, indicated by words or acts, to dedicate the land for public use. Both types of dedications may be formally accepted. Common-law dedications generally convey an easement right to the public; statutory dedications may or may not convey a fee.

Answer is (A)

38. Which of the following describes a situation in which an easement right cannot arise?

(A) Easements can be created to protect a property's access to sunlight.

(B) A way of necessity may be created when property is conveyed without any access.

(C) Easements can arise by estoppel.

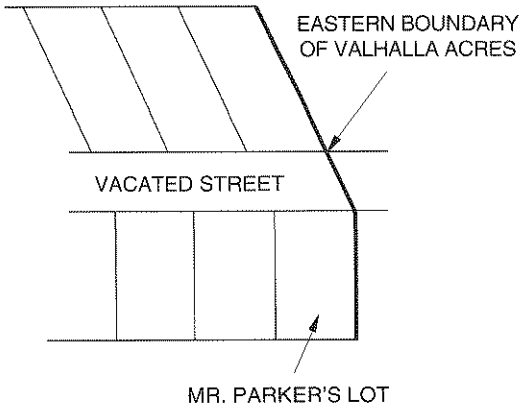
(D) An easement can be acquired by adverse possession.

Solution: All the statements may produce easement rights except the one regarding adverse possession. Adverse possession, where successfully claimed, produces a fee simple absolute, not an easement, in most jurisdictions.

Answer is (D)

PER. 24

39. Mr. Parker's lot is on the boundary of Valhalla Acres. The street north of his lot has been vacated; the underlying fee has reverted to Mr. Parker. Which of the following statements describes the extent of that reversion?



(A) The sidelines of his lot will extend to the north side of the street.
(B) The reversion rights cannot extend beyond the subdivision boundary.
(C) There is no rule for this situation.
(D) Both A and B are true.

Solution: The original subdivider of Valhalla Acres had no interest in the land beyond the boundary of the subdivision. Since his title is through that subdivider, Mr. Parker has no reversionary right beyond that boundary once the street is vacated.

Answer is (B)

40. Which of the following statements is inconsistent with the definition of an easement?

(A) An easement is a fee interest in land.
(B) An easement is defined for specific uses.
(C) An easement is a nonpossessory interest in land.
(D) The owner of an easement appurtenant has an easement over the land of another.

Solution: An easement is a nonpossessory interest in the land of another, and as such cannot be considered a fee interest in land.

Answer is (A)

PROPORTIONMENT

41. Proportionate measurement may be described as an even distribution of a discovered excess or a deficiency of measurement to all parts of an established line. This procedure can be further defined by which of the following statements?

(A) The method should only be used in the resolution of conflicts between junior and senior property rights.
(B) The method should only be applied to the reestablishment of obliterated corners in the Public Land Surveying System.
(C) The method is best applied where the original monumentation called for on the plat of a subdivision is found at every lot corner, and the retracement survey measurements agree with the platted dimensions.
(D) The method is usually applied to parcels created simultaneously where original monumentation definitely has been lost.

Solution: Proportionate measurement is a last resort in the restoration of lost monumentation where no parcel has priority over any of the others under consideration.

Answer is (D)

42. In which of the following situations would the stated conditions definitely exclude proportionate measurement from the possible solutions?

(A) The discrepancy between a retracement and the record length of a line was found to be attributable to a mistake in its measurement.

(B) A deficiency is found in a block of a platted subdivision, but all required monumentation can be established by acceptable collateral evidence.

(C) Several parcels were created at various times by a common grantor.

(D) All of the above are true.

Solution: Proportionment is not applicable to sequential conveyances. It should not be used to distribute excesses or deficiencies that are attributable to mistakes, and should always be a rule of last resort.

Answer is (D)

43. The exact width of streets as shown on a duly recorded subdivision plat governs their location. Except where original monuments set by the original surveyor indicate otherwise, an excess or deficiency in the measurement of adjoining blocks should not be absorbed in the public way. Which of the following statements regarding this principle is correct?

(A) The principle is seldom true. Streets and alleyways should receive a proportional part of any excess or deficiency discovered between original monuments.

(B) The principle is never true. The courts will not uphold such a procedure.

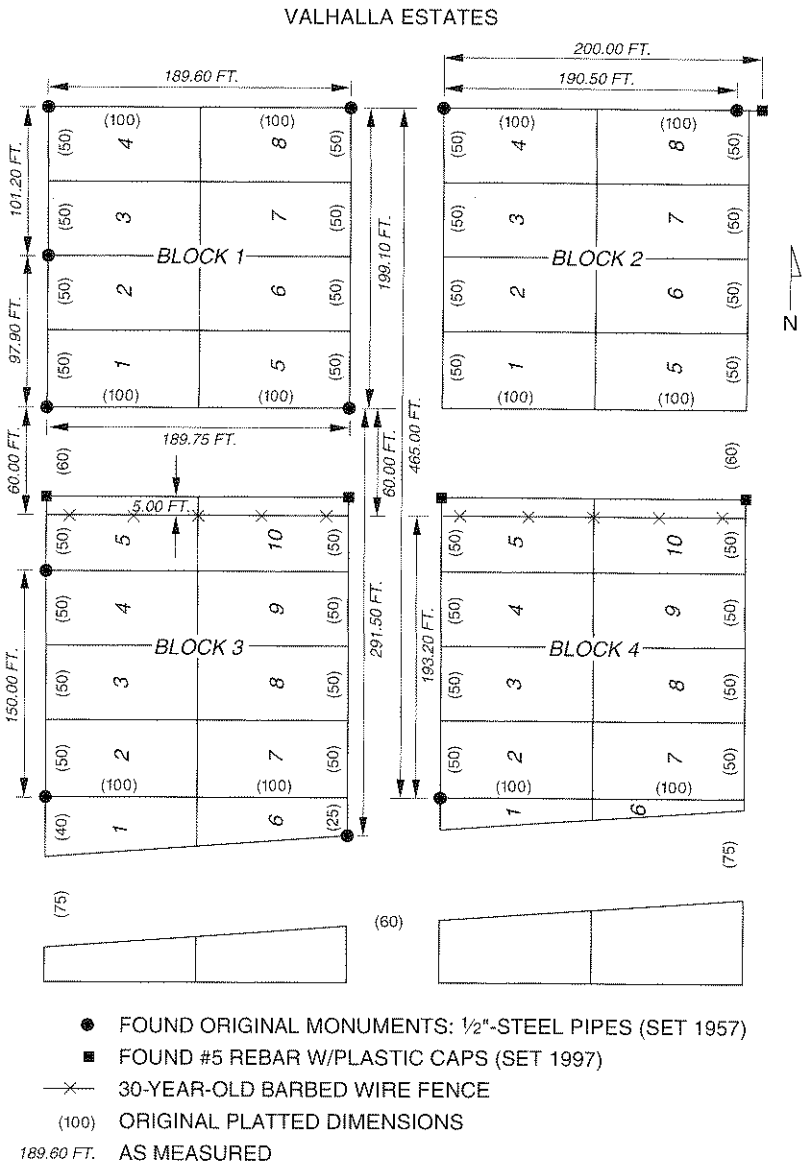
(C) The principle is correct in most circumstances.

(D) Both C and D are true.

Solution: The weight of most common law supports the idea that proportionate measurement should not be used to determine the width of rights-of-way. Infrequently, index corrections are used in reestablishing streets, but these are exceptions to the rule.

Answer is (D)

The following six problems refer to the illustration shown.



The lots shown on a portion of the subdivision plat of Valhalla Estates were created simultaneously. The plat of the subdivision was recorded in 1957. The iron pipe monuments indicated were set at that time. The fence crossing Blocks

3 and 4 has a verifiable age of 30 years. The owners of Lots 5 and 10 in both Blocks 3 and 4 have all accepted the fence as their northern boundary and have maintained it as such. Several monuments were set in a survey that was conducted in 1997; some of those monuments have been recovered as shown.

44. The western boundaries of Lots 2 and 3 of Block 1 both have lengths of 50.00 ft according to the plat of Valhalla Estates. Assuming that all evidence of the original monuments of these lots has been lost, what are the lengths of the boundaries according to the recent measurements indicated in the illustration?

(A) The west lines of both Lots 2 and 3 are 50.00 ft long.
(B) The west lines of both Lots 2 and 3 are 48.95 ft long.
(C) The west line of Lot 2 is 49.77 ft long; the west line of Lot 3 is 52.95 ft long.
(D) The west line of Lot 2 is 48.95 ft long; the west line of Lot 3 is 50.60 ft long.

Solution: Since the lots in Valhalla Estates were created simultaneously, there are no senior rights involved between the two lots. The discrepancy between the plat distances and the found original monuments may be resolved by single proportioning. The measurement between the SW corner of Lot 1 and the NW corner of Lot 2 is 97.90 ft; the record indicates 100.00 ft for the same line.

$$\begin{aligned} \frac{50.00 \text{ ft}}{100.00 \text{ ft}} &= \frac{x}{97.90 \text{ ft}} \\ 4895.00 \text{ ft} &= 100x \\ x &= 48.95 \text{ ft} \end{aligned}$$

The length of the west line of Lot 2 is 48.95 ft.

The single proportionment of the measurement along the west line of Lots 3 and 4 can be proportioned in the same way.

$$\begin{aligned} \frac{50.00 \text{ ft}}{100.00 \text{ ft}} &= \frac{x}{101.20 \text{ ft}} \\ 5060.00 \text{ ft} &= 100x \\ x &= 50.60 \text{ ft} \end{aligned}$$

Answer is (D)

45. What distance in Block 2 should be measured from the NW corner of Lot to establish the NE corner of Lot 4, Block 2?

(A) 100.00 ft
(B) 95.25 ft
(C) 96.33 ft
(D) 97.81 ft

Solution: Any excess or deficiency of a new measurement when compared to record measurement should not be distributed beyond a found verified origina monument. Despite evidence that a subsequent surveyor set a NE corner c Block 2 beyond the original monumentation, the proportionment should not b influenced by the new monumentation.

Answer is (B)

46. What distances should be measured south from the NW corner of Block 2 along the west line to establish the lot corners?

(A) The west lines of Lots 1 through 4 in Block 2 are each 50.00 ft long.
(B) The west lines of Lots 1 through 3 in Block 2 are each 51.25 ft long, bu the west line of Lot 4 is 50.00 ft long.
(C) The west lines of Lots 1 through 4 in Block 2 are each 52.95 ft long.
(D) The west lines of Lots 1 through 4 in Block 2 are each 51.70 ft long.

Solution: First, establish the length of the complete western line of Block 2 The next original found monument available is at the SW corner of Lot 2, Blocl 4. However, there is a fence that has been accepted by the adjoining lot owner as their northern boundary. If the intersection of the fence with the western boundary of Block 4 is accepted as its NW corner, then the length of Block 2 anc the intervening street is

$$\begin{array}{r} 465.00 \text{ ft} \\ -193.20 \text{ ft} \\ \hline 271.80 \text{ ft} \end{array}$$

The dedicated right-of-way is recorded as 60.00 ft and should remain that wide Proportionate measurement should not be used to change the width of a street.

$$\begin{array}{r} 271.80 \text{ ft} \\ \underline{-60.00 \text{ ft}} \\ 211.80 \text{ ft} \end{array}$$

Therefore, the west line of Block 2 is 211.80 ft long. The record indicates that the four lots will share that frontage equally.

$$\frac{211.80 \text{ ft}}{4} = 52.95 \text{ ft}$$

Answer is (C)

47. What distance should be measured from the SE corner of Block 3 to establish the NE corner of Lot 6, Block 3?

(A) 25.00 ft
(B) 26.28 ft
(C) 25.67 ft
(D) 25.72 ft

Solution: The measured distance from the SE corner of Block 3 to the SE corner of Block 2 is 291.50 ft. The plat indicates that this distance is 285.00 ft. However, the street must receive its full 60.00 ft before any excess of the measurement is distributed among the lot frontages.

$$\begin{array}{r} 291.50 \text{ ft} \\ \underline{-60.00 \text{ ft}} \\ 231.50 \text{ ft} \end{array}$$

$$\begin{aligned} \frac{25.00 \text{ ft}}{225.00 \text{ ft}} &= \frac{x}{231.50 \text{ ft}} \\ 5787.50 \text{ ft} &= 225.00x \\ x &= \frac{5787.50 \text{ ft}}{225.00} \\ &= 25.72 \text{ ft} \end{aligned}$$

Answer is (D)

48. Lot 6 of Block 4 has not been given a dimension on the plat and the original monuments of the lot have been lost. Which of the following principles might be appropriate in the reestablishment of the lost corners of Lot 6?

(A) Irregular lots without dimensions on the recorded subdivision plat will take the excess or lose the deficiency in a measurement of the original lines.

(B) Lots without dimensions must be scaled from the plat, and the distances so determined control its boundaries.

(C) Irregular lots are frequently subdivisional errors and should be combined with the adjoining lot, particularly where a block shows a deficiency in measurement.

(D) The dimensions of the irregular lot should be computed area as determined from the plat.

Solution: When a lot is shown without dimensions on a subdivision plat, particularly at the end of a block or adjoining the subdivision boundary, any excess or deficiency is frequently given to that lot. The presumption is that the original proprietor intended that the irregular lot absorb the discrepancies of the measurements.

Answer is (A)

The following three problems refer to the Fairview Tract, described as follows.

Mr. Holland owns a parcel of land known as the Fairview Tract. The Fairview Tract has been platted and recorded as a square parcel, with each side 650.00 ft long and oriented in a cardinal direction. No improvements have been made, but the parcel has been surveyed and its four corners monumented. The monuments are still in place.

49. Mr. Holland sold the east 325 ft of the Fairview Tract to Mr. Clark by deed dated Oct. 12, 1998. A year later, Mr. Holland sold to Mr. Brown the west 325 ft of the Fairview Tract, described as extending to the west line of Mr. Clark's property.

A new survey finds that the distance between the SW and SE corners of the Fairview Tract is 655.00 ft.

What distance should be measured from the SW corner of the Fairview Tract to establish the SE corner of Mr. Brown's property?

(A) 325.00 ft
(B) 327.50 ft
(C) 330.00 ft
(D) 325.50 ft

Solution: Proportionate measurement has no place in the solution of this situation. Senior and junior rights are the deciding factors. Mr. Clark's property is senior to Mr. Brown's. If no lines of possession are involved, Mr. Clark would receive the east 325 ft. Mr. Brown's deed calls for Mr. Clark's property as an adjoiner, so the weight of court opinion would hold that Mr. Brown would acquire the remaining 330.00 ft of the Fairview Tract.

Answer is (C)

50. Mr. Holland sold the east 325 ft of the Fairview Tract to Mr. Clark by deed dated Oct. 12, 1988. Mr. Holland then sold the west 325 ft of the Fairview Tract to Mr. Brown by deed dated Jan. 29, 1990.

A new survey finds that the distance between the SW and SE corners of the Fairview Tract is 645.00 ft.

What distance should be measured from the SW corner of the Fairview Tract to establish the SE corner of Mr. Brown's property?

(A) 323.00 ft
(B) 324.50 ft
(C) 330.00 ft
(D) 320.00 ft

Solution: Mr. Clark has senior rights and receives the east 325 ft. Mr. Brown receives the remaining 320.00 ft. Proportionate measure is not applicable in such circumstances.

Answer is (D)

51. Mr. Holland sold the east 325 ft of the Fairview Tract to Mr. Clark and the west 325 ft to Mr. Brown by the same deed dated July 2, 1998.

The distance measured between the SW corner and the SE corner of the Fairview Tract is 658.24 ft.

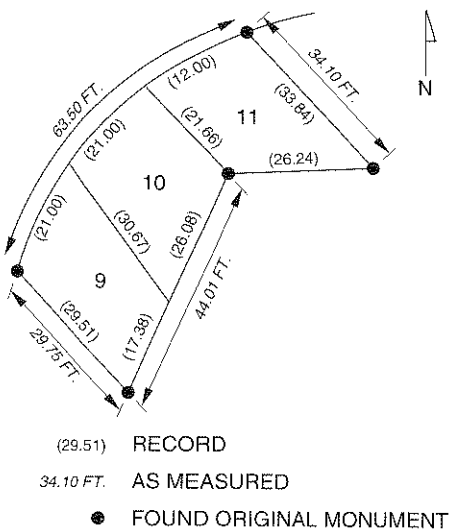
What distance should be measured from the SW corner of the Fairview Tract to establish the SE corner of Mr. Brown's property?

(A) 329.12 ft
(B) 333.24 ft
(C) 325.00 ft
(D) 322.23 ft

Solution: Proportionate measurement is appropriate in this situation. The critical factor is the simultaneous execution of the deeds to Mr. Brown and Mr. Clark. They each will receive half of the measured frontage: 329.12 ft.

Answer is (A)

The following two problems refer to the illustration shown.



(29.51) RECORD
34.10 FT. AS MEASURED
● FOUND ORIGINAL MONUMENT

52. What distance should be measured from the NE corner of Lot 11 along the arc to reestablish the NW corner of Lot 11?

(A) 12.00 ft
(B) 21.00 ft
(C) 21.17 ft
(D) 18.00 ft

Solution: Proportionate measurement should not be used to distribute the effect of a mistake. The 12.00 ft shown on the plat as the frontage of Lot 11 is clearly a mistake on the part of the draftsman. The intended dimension was 21.00 ft. Proportionment of the frontage indicates that each of the lots should receive 21.17 ft.

$$\begin{aligned}\frac{21.00\text{ ft}}{63.00\text{ ft}} &= \frac{x}{63.50\text{ ft}}\\ 1333.50\text{ ft} &= 63.00x\\ x &= \frac{1333.50\text{ ft}}{63.00}\\ &= 21.17\text{ ft}\end{aligned}$$

Answer is (C)

53. What distance should be measured from the SW corner of Lot 9 to the SE corner of Lot 9?

(A) 17.60 ft
(B) 17.38 ft
(C) 17.50 ft
(D) 17.49 ft

Solution: Single proportionate measurement is applicable to this situation.

$$\begin{aligned}\frac{17.38\text{ ft}}{43.46\text{ ft}} &= \frac{x}{44.01\text{ ft}}\\ 764.89\text{ ft} &= 43.46x\\ x &= \frac{764.89\text{ ft}}{43.46}\\ &= 17.60\text{ ft}\end{aligned}$$

Answer is (A)

WATER BOUNDARIES

54. Which of the following statements regarding reliction is not correct?

(A) Reliction is the uncovering of land by the recession of water.
(B) Reliction is the sudden and permanent withdrawal of a sea, river, or lake.
(C) Reliction is also known as dereliction.
(D) Reliction is different from avulsion.

Solution: Reliction is a slow and imperceptible recession of water and the attendant uncovering of the land once submerged. The recession of the water must be permanent to be considered reliction.

Answer is (B)

55. Which of the following rights is related to the bank of a stream, river, or other body of flowing water?

(A) reversionary rights
(B) littoral rights
(C) meander rights
(D) riparian rights

Solution: Along streams and rivers, abutting owners are entitled to riparian rights, which originated in common law. The precise nature of these rights varies from jurisdiction to jurisdiction, but is generally related to the use of the water, as well as the banks and bed, of a stream.

Answer is (D)

56. Avulsion is best defined by which of the following statements?

(A) Avulsion is the process that gradually builds up alluvion.
(B) Avulsion is the rapid erosion of a shore.
(C) Avulsion is the sudden removal of land from one owner and its addition to the land of another owner by the action of water.
(D) Both B and C are true.

Solution: Avulsion is a sudden, perceptible loss or addition of land caused by the action of water. An example of avulsion is when a river suddenly breaks its banks and forms a new channel, thereby cutting off a large portion of land.

Answer is (D)

57. Which of the following terms applies to the action of water gradually building up sand and soil and the subsequent formation of firm ground?

(A) revulsion
(B) dereliction
(C) erosion
(D) accretion

Solution: Accretion is the gradual and imperceptible process of building up new land by the action of water.

Answer is (D)

58. Which of the following terms applies to land formed by sediment laid down by the action of water, such as that resulting from a slowing of the current of a stream or river?

(A) accretion
(B) ambit
(C) littoral
(D) alluvium

Solution: The action that causes the building of land along a water boundary is known as *accretion*. The land built by such action is known as *alluvium*.

Answer is (D)

59. Which of the following terms best describes the deepest or most navigable part of a river channel?

(A) the mean high water mark
(B) the thread
(C) the batture
(D) the thalweg

Solution: The line connecting the lowest part of a valley and the deepest part of a river is known as the *thalweg*. The term is also used to denote the middle of the main navigable channel.

Answer is (D)

60. Which of the following statements concerning meander lines is true?

(A) A meander line defines the property boundary of the upland owner abutting a navigable waterway, unless there are specific legal provisions to the contrary.

(B) A meander line established during a public land survey was intended to follow the mean high water mark.

(C) When the bank of a navigable river shifts, the meander line shifts with it.

(D) Nonnavigable bodies of water were not meandered during the public land surveys.

Solution: The meander lines established by public land surveys were intended to follow the mean high water line and were not intended to establish the legal boundaries of the abutting upland owners.

Answer is (B)

61. Which of the following terms most accurately describes the rights along the shore of a pond, lake, or sea?

(A) riparian

(B) batture

(C) thweat

(D) littoral

Solution: Littoral is the word most often used to describe rights associated with water that is not flowing. The word usually pertains to the seashore, but is also used regarding lakes and ponds.

Answer is (D)

LITTORAL RIGHTS:

ALONGSIDE A POND, LAKE OR SEA..

NONFLOWING

62. Title to land may be gained or lost by the action of water. What sort of change may cause a riparian owner to gain land?

(A) Land built by accretion belongs to the riparian owner.
(B) Land deposited by avulsion belongs to the riparian owner where it was deposited.
(C) Land that becomes newly inundated with water belongs to the riparian owner.
(D) Both A and B are true.

Solution: Even if the state is considered to own the bed of a stream, in most jurisdictions the riparian owner may nevertheless acquire land by accretion. The alluvium that is gradually deposited by the natural action of water is gained by the owner of the land to which it attaches.

Answer is (A)

63. Title to land may be gained or lost by the action of water. What sort of change may cause a riparian owner to lose land?

(A) Title to land that is cut off from a riparian owner by the sudden shift of the channel of a river is lost by that owner.
(B) Land that is gradually eroded or submerged is lost by the original riparian owner.
(C) Relicted land is lost to the original riparian owner.
(D) Both A and C are true.

Solution: A riparian owner may lose title to land that gradually becomes eroded or permanently inundated with water. If the change is sudden, however, the title will not change.

Answer is (B)

64. A particular navigable stream has been meandered; the meander line has been in place for 75 years. Recently, the amount of water flowing through the channel of the stream has gradually decreased from natural causes. All indications are that the reduction in the flow is permanent. The riparian owner abutting the stream on one side has asked the surveyor to tell him where his boundary along the stream now falls. What should the surveyor tell him?

(A) The riparian owner holds to the same meander line that he has for the last 75 years.
(B) The riparian owner most likely holds to the thread of the stream.
(C) The riparian owner holds to the original mean high water line that was established before the stream shrank.
(D) The riparian owner most likely holds the newly relicted land.

Solution: In the majority of jurisdictions the riparian owner holds the relicted land to the new mean high water line. He does not hold to the old or a new meander line. Meander lines are not intended to be property boundaries.

Answer is (D)

65. To accurately determine mean high tide, how long must a given station be monitored?

(A) 1 year
(B) 19 years
(C) 6 months
(D) 1 week

Solution: A full 18.6 years is required for the relative positions of the sun, moon, and earth to be repeated. This tidal cycle is often rounded off to 19 years. To obtain the correct mean high tide at a given station, that station should be monitored for the full period. However, such monitoring is normally not practical.

Answer is (B)

66. Coastal areas that experience one high tide and one low tide during a tidal day are said to have what type of tides?

(A) neap tide
(B) retrograde tide
(C) diurnal tide
(D) semidiurnal tide

Solution: A diurnal tide is one that recurs daily. Along the Atlantic coast, the two daily high tides and two daily low tides are much alike and are called a *semidiurnal tide*.

Answer is (C)

TESTIMONY

67. The testimony of a licensed land surveyor is generally held by courts to be expert. What distinction is afforded such testimony?

(A) Expert testimony need not be given under oath.
(B) Expert testimony normally gives the surveyor more latitude to express opinions.
(C) Expert testimony is not permitted in trials before a jury.
(D) Both A and B are true.

Solution: The expression of opinion is generally more restricted in testimony that is not considered expert.

Answer is (B)

68. A land surveyor may take testimony. In which of the following situations may a licensed land surveyor find such authority useful?

(A) the establishment of the age of a fence
(B) the drafting of a property line agreement between adjoining land owners
(C) establishing the priority between two conflicting corner monuments
(D) A, B, and C

Solution: It would not be useful to attempt to resolve a patent ambiguity in the language of a deed with testimony. Such a contradiction cannot normally be cured by testimony.

Answer is (D)

69. A surveyor has been hired as an expert witness in an action to quiet title and will be paid a fee. Which of the following would be inappropriate?

(A) The surveyor is asked the amount of the fee during cross-examination.
(B) The court has fixed the amount of the fee.
(C) The fee includes compensation for the surveyor's travel and lodging expenses.
(D) All of the above are appropriate.

Solution: All of the aspects of the fee listed are entirely proper. It would be improper for the amount of the surveyor's fee to depend on the final decision of the court. The attorney performing the cross-examination has the right to ask the surveyor about the fee.

Answer is (D)

70. Which of the following statements describes something a surveyor should not do while testifying as an expert witness before the court?

(A) examine pertinent maps, field notes, and photographs
(B) discuss opposing viewpoints regarding the questions at issue
(C) answer hypothetical questions
(D) offer to answer the ultimate question of the case before the court

Solution: A decision on the central question of the case is the exclusive purview of the court, not the expert witness.

Answer is (D)

71. Generally, a land surveyor appearing as an expert witness may expect the initial questions to involve which of the following?

(A) the surveyor's relationship with the defendant
(B) the name of the client and the nature of the work done
(C) opinions on the issues before the court that contradict those expressed by the surveyor
(D) the surveyor's qualifications and experience

Solution: In order to establish the credibility of the testimony, the initial questions commonly pertain to the surveyor's experience and qualifications.

Answer is (D)

ORDER OF CALL AND THE PRIORITY OF MONUMENTS

72. Which of the following elements that can control the location of land boundaries is usually considered the most important when found to be in conflict with the others?

(A) a senior right of possession
(B) a call for an adjoiner
(C) a call for an artificial monument
(D) an unwritten right of possession

Solution: Generally, an unwritten right of occupancy that has duly ripened into a legal right is considered superior to all others, including senior rights and writings. However, it is difficult for a right of occupancy to so ripen.

Answer is (D)

73. Between two private owners of sequential conveyances, which of the following would most likely control if their deeds contain conflicting elements?

(A) a call for a particular distance along a boundary
(B) a call for a particular direction along a boundary
(C) a call for a specific acreage
(D) a senior right

Solution: The junior deed will generally yield to the senior deed where there are no unwritten rights of possession. The seniority of one deed over another will overcome all other conflicts between the two deeds in most situations.

Answer is (D)

74. Which of the following elements that can control the location of land boundaries is usually considered the least important when found to be in conflict with the others?

(A) a call for distance
(B) a call for an artificial monument
(C) a call for a survey
(D) the area of the property described

Solution: The area described in a deed is usually considered the least specific element of the title and therefore the least locative.

Answer is (D)

75. Monuments sometimes cannot be conclusively proved or disproved. In such circumstances, a monument may be accepted by reputation. What is the term used to describe such a monument?

(A) a monument of common report
(B) a monument by informative evidence
(C) a defective monument
(D) a reversionary monument

Solution: A monument of common report is one that is supported by hearsay evidence. The acceptance of such a monument can only be considered reasonable when the monument cannot be conclusively proved or disproved by any other means. In other words, it should be a rule of last resort.

Answer is (A)

76. Which statement is most correct regarding the relative importance of measured distances as compared to measured directions when resolving conflicting title elements?

(A) Direction is superior to distance.
(B) Distance is superior to direction.
(C) There is no consistent rule regarding the relative importance of distance and direction.
(D) They are considered equally important.

Solution: There is no consistent rule from jurisdiction to jurisdiction concerning whether distance should yield to direction or vice versa. In sectionalized lands, distances have generally been held as superior to direction, but in Texas and Kentucky, the opposite has generally been the case.

Answer is (C)

77. A deed describes a lot that is shown on a recorded plat showing 1-in iron pipe monuments set at each corner. However, the description in the deed makes no mention of the iron pipe monuments and describes the boundary lines only by bearings and distances. If a surveyor retracing the boundary finds some of the original 1-in iron pipe monuments in positions that do not agree with the measured bearings and distances in the deed, which evidence should yield, and why?

(A) If the surveyor is convinced that the 1-in iron pipe monuments are undisturbed, the bearings and distances should yield.
(B) The 1-in iron pipe monuments should yield since they are not called for in the deed description and were only shown on the plat.
(C) Even if the surveyor is convinced that the 1-in iron pipe monuments have not been disturbed, the bearings and distances must be considered the best evidence of the original position of the boundary, since the deed is the instrument of the conveyance, not the plat.
(D) If the surveyor is convinced that the 1-in iron pipe monuments are undisturbed and the parties to the deed acted with reference to the plat, the bearings and distances should yield.

Solution: The 1-in iron pipe monuments should be held as controlling if the parties to the deed acted with specific reference to the plat. If the deed mentions the plat in the writings, the plat becomes part of the deed, and the monuments may then be said to have been called for. If they are undisturbed, called for, and identifiable, they are superior to the informative bearings and distances.

Answer is (D)

78. What is the fundamental principle behind the preference for one title element over another? For example, why are found original monuments generally preferred over a call for the measured distance between the monuments when they are in conflict?

(A) The element that is least likely to be in error is considered controlling; those that conflict with it are considered merely informational.

(B) When a well-known order of importance of conflicting title elements evolves over time in a region and is supported by a body of common law, such a ranking should be followed regardless of extrinsic evidence to the contrary.

(C) When the written elements of a deed description are superior to any other considerations as codified by the Statute of Frauds, all other conflicting evidence of title must be considered inferior.

(D) Both A and B are true.

Solution: While common law does tend to support a particular ranking of conflicting title elements, such an order of importance should not be followed slavishly. Extrinsic evidence to the contrary should be considered. The written elements of a deed are important, but properly ripened unwritten rights may defeat them.

Answer is (A)

79. In retracing a particular boundary, a surveyor found three monuments tha all purported to stand for the same corner. One of the monuments fell at th bearing and distance called for in the client's deed. Another was precisely th monument called for in the deed. However, both of these monuments caused hi client's property to overlap the neighbor's property. Finally, the third monumen found was called for in the neighbor's deed. If the neighbor's adjoining deed i senior to the client's deed, which of the following statements is correct?

(A) The monument called for in the adjoining senior deed is superior to th other two and should be controlling.

(B) The monument that is in harmony with the bearing and distance recorde in the client's deed is the correct location for the corner.

(C) The monument called for in the client's deed is superior to the other two even if it does not fall at the bearing and distance recorded in the dee description.

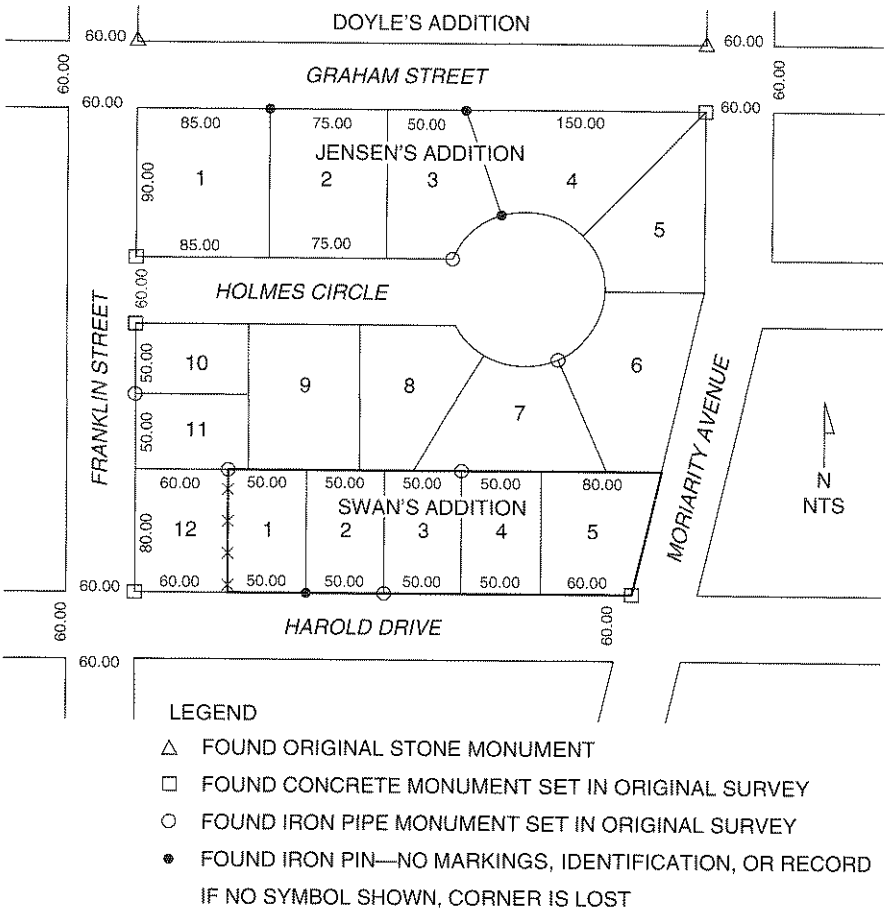
(D) None of the monuments described should be controlling. The surveyo should harmonize the calls and set the monument at the best fit based o all of the evidence available.

Solution: The senior right of the adjoining deed should not be violated. Th monument called for in the senior deed is most likely the correct position.

Answer is (A)

CASES

The following six problems refer to the illustration shown and to the accompanying statement.



The five lots of Swan's Addition were platted in 1951, prior to the 12 lots in Jensen's Addition. The lot lines were originally laid out perpendicular to the straight streets and radial to the cul-de-sac. Distances given are the record values, in feet.

80. Measuring westerly along the south line of Swan's Addition, the following stations were established.

Station	Monument
0+00	concrete monument at the SE corner of Swan's Addition
1+60.14	iron pipe monument at the SE corner of Lot 2
2+10.31	iron pin without markings at the SE corner of Lot 1
2+60.03	fence built last year by the owner of Lot 12
3+20.25	concrete monument at the SW corner of Jensen's Addition

At what distance from the concrete monument at the SW corner of Jensen's Addition would the SW corner of Swan's Addition be set?

(A) 60.22 ft
(B) 60.17 ft
(C) 60.12 ft
(D) 60.04 ft

Solution: The best evidence available for the position of the SW corner of Lot 1 is two monuments. The iron pipe monument at the SE corner of Lot 2 and the concrete monument at the SW corner of Jensen's Addition are superior to the fence and the iron pin, which have no record standing or other support. The proportionate measurement between the iron pipe and the concrete monument may be arranged as follows.

$$\begin{aligned} \text{Measured:} \qquad & \text{Record:} \\ \frac{x}{160.11 \text{ ft}} &= \frac{60.00 \text{ ft}}{160.00 \text{ ft}} \\ x &= \frac{(60.00 \text{ ft})(160.11 \text{ ft})}{160.00 \text{ ft}} \\ &= 60.04 \text{ ft} \end{aligned}$$

Answer is (D)

81. How should the NW corner of Lot 3 of Swan's Addition be relocated?

(A) at a distance of 80.00 ft measured along a line perpendicular to the north line of Harold Drive from the iron pipe at the SW corner of Lot 3

(B) at a distance of 50.00 ft measured along the line from the iron pipe at the NE corner of Lot 3 to the iron pipe at the NW corner of Lot 1

(C) at a distance of 80.00 ft from the iron pipe at the SW corner of Lot 3 and at a prorated distance between the iron pipes at the NE corner of Lot 3 and the NW corner of Lot 1

(D) at a proportioned distance on the line described by the iron pipe at the NE corner of Lot 3 and the iron pipe at the NW corner of Lot 1

Solution: The iron pipe monuments at the NE corner of Lot 3 and at the NW corner of Lot 1 are the best remaining evidence of the original location of the NW corner of Lot 3.

Answer is (D)

82. Each measurement along the west line of Jensen's Addition reveals a shortage of 0.03 ft per hundred feet. What is the best method of relocating the NW corner of the subdivision in a north-south direction?

(A) the record width of Graham Street, 60.00 ft, measured from the stone monument at the SW corner of Doyle's Addition

(B) a prorated distance between the concrete monument at the SW corner of Lot 1 of Jensen's Addition and the stone monument at the SW corner of Doyle's Addition

(C) the line defined by the concrete monument and the two iron pins on the south line of Graham Street

(D) a line through the stone monument at the NE corner of Jensen's Addition that is parallel with and 60.00 ft south of the line described by the two stone monuments of Doyle's Addition

AVE METHOD ?

Solution: The record width of the streets should not be prorated. The best available evidence is the stone monument at the SW corner of Doyle's Addition.

Answer is (A)

83. What is the best method of relocating the NW corner of Jensen's Addition in an east-west direction?

(A) the line defined by the concrete monuments on the east line of Franklin Street and the stone monument at the SW corner of Doyle's Addition

(B) the prolongation of the line described by the three concrete monuments on the east line of Franklin Street

(C) a line perpendicular with the north line of Holmes Circle measured from the SW corner of Lot 1 of Jensen's Addition

(D) an index correction applied to the measurement of 85.00 ft from the iron pin at the NE corner of Lot 1

Solution: The line defined by the concrete monuments on the east side of Franklin Street as seen from the stone monument at the SW corner of Doyle's Addition is the best definition of the east-west location of the NW corner of Jensen's Addition.

Answer is (A)

84. Which statement describes the best criterion for accepting monuments that are not called for in the description or on the plat?

(A) a monument set by a licensed land surveyor

(B) a monument of common report

(C) a monument that is near to the position of a corner

(D) an uncalled-for monument set in accordance with an original survey

Solution: Monuments set as the result of an original survey are often accepted as corners they were intended to represent, even when they are not called for in the deed or on the plat.

Answer is (D)

85. Which of the methods described is the most likely to locate the correct center of the cul-de-sac on Holmes Circle?

(A) the intersection of the centerline of Holmes Circle as defined by the concrete monuments at Franklin Street and the iron pipe on its north side with the line described by the iron pipe and iron pin found on the cul-de-sac

(B) the intersection of the centerline of Holmes Circle as defined by the concrete monuments at Franklin Street and the iron pipe on its north side with the platted dimension from the concrete monument found at the NE corner of Lot 4

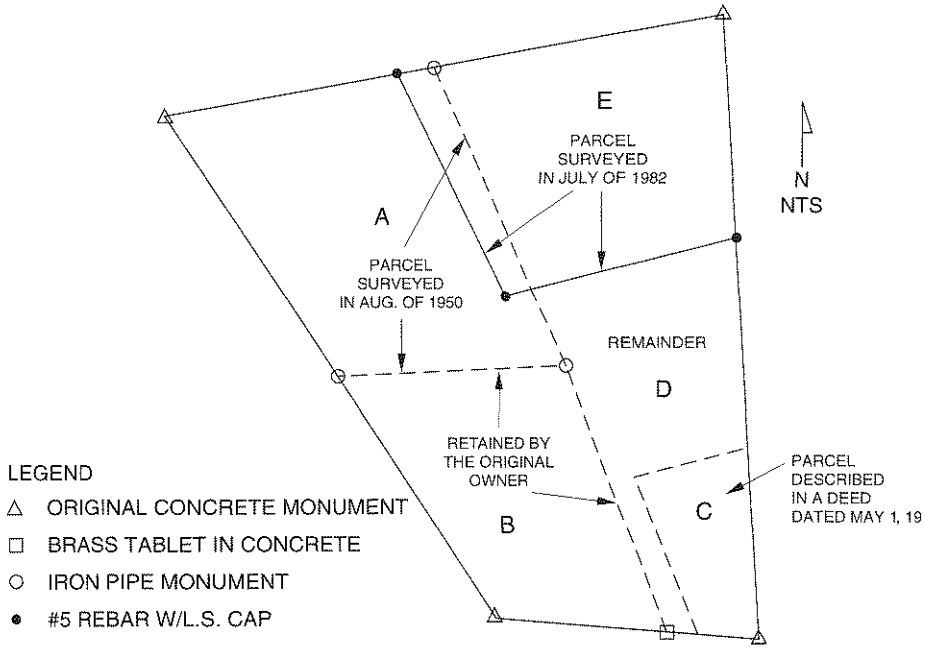
(C) the intersection of the centerline of Holmes Circle as defined by the concrete monuments at Franklin Street and the iron pipe on its north side with arcs of the platted radius of the cul-de-sac swung from the found iron pipes on its perimeter

(D) arcs of the platted radius of the cul-de-sac swung from the found iron pipes on its perimeter intersected with the platted dimension from the concrete monument found at the NE corner of Lot 4.

Solution: The iron pipes on the perimeter of the cul-de-sac are the best evidence of its original location. The intersection of arcs swung from these pipes should be the center of the cul-de-sac; however, the result may be verified by intersecting the arcs with the centerline of Holmes Circle. While these methods may not yield the same results, they provide a good basis for the determination of the center of the cul-de-sac.

Answer is (C)

The following four problems refer to the illustration shown and the accompanying statement.



Assume that the surveys that partitioned the original owner's tract were performed in accordance with the bearings and distances found in the deed descriptions provided to the surveyors.

The owner of each parcel derived title from the same original owner who retains parcel B. Also, the deeds involved had no patent ambiguities.

86. What is the correct position of the western boundary of parcel E?

(A) The boundary shared by parcels A and E should split the difference between the two overlapping lines.

(B) The matter should be decided in a court of law.

(C) The strip of land shown as an overlap is the property of the owner of parcel E, unless E's deed calls for the eastern boundary of parcel A as a record monument.

(D) The strip of land shown as an overlap is the property of the owner of parcel A. His claim could only be defeated by a duly ripened right of possession.

Solution: The owner of parcel A has senior rights. Such a right can only infrequently be defeated by a right of possession.

Answer is (D)

87. A surveyor has been called by the owner of the original parcel, who now resides on parcel B. The owner sold the parcel labeled "remainder" by an instrument that conveyed parcel D by exceptions. The deed conveyed to the owner of parcel D all the land not included in parcels A, B, C, and E. The grantor is upset that the owner of parcel D is now using the strip of land between parcels B and C as a driveway. The grantor is convinced that he granted no easement across his property or parcel C and that there should be no gap between parcels B and C. Which statement is most correct regarding the apparent gap between parcels B and C?

(A) The deed to parcel C was intended to be coincident with the east boundary of parcel B, so there can be no gap between the parcels, regardless of the distances called for in the deed.

(B) Since there are no monuments at the corners of parcel C and the grantor did not intend the gap to exist, there is no gap, whatever the distances in the deed description.

(C) When a large gap exists between adjoining parcels, the courts have generally held that the original grantor retains the ownership of the strip. Therefore, the gap may exist, but the grantor can prevent its use as an easement if so desired.

(D) The gap exists and belongs to the owner of parcel D. The deed for parcel D was by exceptions; unless the strip was covered by some other conveyance at the time the deed to parcel D was executed, the strip can be used as the owner of parcel D sees fit.

Solution: The grantor's protest cannot overcome the language of the conveyance that created parcel D, nor can the grantor prevent a use that was not prohibited by the deed.

Answer is (D)

88. The owner of parcel D has built a fence from the iron pipe at the NE corner of parcel B to the #5 rebar and cap at the SW corner of parcel E. The owner of parcel A is complaining bitterly. The owner of parcel D claims that parcel E's SW corner was represented by the grantor as the NW corner of parcel D. Does the owner of parcel D have a right to build the fence?

(A) Yes, because the grantor led the owner of parcel D to believe that parcel D included the fenced area.

(B) No, because the grantor cannot sell what he does not own, and land cannot be conveyed without a writing. Such a transfer would be a violation of the Statute of Frauds.

(C) Yes, because parcel A's senior rights over parcel E do not extend to innocent third parties such as the owner of parcel D.

(D) Both A and C are true.

Solution: The rebar at the SW corner of parcel E is in error. The owner of parcel A has senior rights to the area the owner of parcel D has fenced, and despite the grantor's statements to the contrary, the owner of parcel D does not own the fenced area.

Answer is (B)

89. The owner of parcel E points out that the #5 rebar at the NW corner of his parcel is at the exact distance and bearing described in his deed as measured from the original concrete monument at his NE corner. Also, he asserts that there is no call for the eastern boundary of parcel A in his deed and that all of the bearings and distances in his deed have been correctly laid out. Which statement will best explain to the owner of parcel E that, despite these facts, the east line of parcel A must be the west line of parcel E?

(A) Through an honest mistake, the grantor did not realize at the time the deed to parcel E was executed that he no longer owned the overlap. He was not aware that he had already sold it to the owner of parcel A.

(B) If the owner of parcel E had fenced the property immediately after his purchase, he might have been able to acquire the overlapping area, but since he did not, he lost the opportunity.

(C) The surveyor who laid out parcel E did a poor job and the owner was misled.

(D) Measured distances are only informative; the actual location of a boundary is often subject to extrinsic evidence.

Solution: Using technical language or casting aspersions on others are not good methods of explaining unpleasant realities to property owners. It is also counter-productive to suggest that the owner of the parcel was at fault or that the deed is defective.

Answer is (A)

The following six problems refer to the outlined case.

An interpleader suit filed in the Court of Civil Appeals of Texas in September 1982 concerning the construction of a mineral deed included the following facts. By a deed dated June 10, 1954, Mr. Brown, as grantor, conveyed a one-thirty-second of a one-eighth mineral interest in 50 acres of land of the Jack Spail Survey. The deed included the following language.

> I, George Brown, in consideration of the sum of Ten Dollars ($10.00) in hand paid by L. M. Toy, hereinafter called Grantee, have granted, conveyed, assigned, and delivered unto said Grantee an undivided one-thirty-second of the usual one-eighth interest in and under, and that may be produced from, the following described land situated in Van Zandt County, Texas ...
>
> To have and to hold the above described property, together with all singular rights and appurtenances thereto in anywise belonging unto the said Grantee herein, his heirs and assigns forever, and I do hereby bind myself, my heirs, executors, and administrators to warrant and forever defend the said property unto the said Grantee herein, his heirs, and assigns against every person whomsoever lawfully claims the same or any part thereof for a period of 20 years from the date hereof and no longer.

Oil was discovered on the property in paying quantities prior to 1954 and was continuously produced to the date the suit was filed by the Cobalt Oil Company in 1982. Cobalt Oil, as the stakeholder, filed the suit alleging that it had been confronted by conflicting claims of interest growing out of the construction of the deed from Brown to Toy. It asked the court to determine the respective interests of the two parties and deliver the proceeds from oil and gas to the rightful owner.

George Brown, the appellant, contended that the deed in question terminated the grant after a period of 20 years from June 10, 1954. Additionally, he contended that the instrument was ambiguous and a mutual mistake followed regarding his intention to limit the grant to 20 years. Therefore, Mr. Brown requested that the court reform the instrument to clearly reflect that intention.

Mr. Toy, the appellee, answered that a fee simple interest was conveyed by the deed and that the limitation of 20 years applied to the warranty only. In answer to the appellant's prayer for reformation, the appellee pled the statute of limitations, the Statute of Frauds, stale demand, and laches.

90. The action is an interpleader suit. Which statement best describes the meaning of the term in this case?

(A) an action brought before the court in which one party states that he will not be bound by the consequences of the resolution beyond a certain time

(B) a proceeding that takes the place of an action of replevin where a third party intervenes in an attachment and holds the title of the property attached

(C) an action, brought by a party from whom several people claim the same proceeds, that asks those people to litigate the matter among themselves

(D) a proceeding by which a third party, though not originally involved in the action, claims an interest in the subject matter of a suit in order to protect his rights

Solution: An interpleader suit arises when two or more people claim the same thing from a third. The third party, uncertain of the just demand, may require them to interplead their claims so that the third party is not exposed to double liability.

Answer is (C)

91. The actions described took place in a court of appeals. Which of the parties to the appeal was the defendant in the original action?

(A) It is not possible to determine from the facts given which of the parties was the defendant in the original action.

(B) Mr. Brown was the defendant.

(C) Mr. Toy was the defendant.

(D) Both Mr. Brown and Mr. Toy were defendants.

Solution: It frequently is not clear which party was the original defendant when looking at a case in the court of appeals. However, in this case, both Mr. Brown

and Mr. Toy were defendants since they were joined as claimants to the proceeds held by the Cobalt Oil Company. Cobalt Oil required them to interplead their claims.

Answer is (D)

92. The case identifies the Cobalt Oil Company as the stakeholder. What is the meaning of the term *stakeholder* as used in this situation?

(A) The word indicates that Cobalt Oil is the holder of the mineral lease that is in contention.

(B) The word means that Cobalt Oil successfully explored the 50 ac mentioned in the case and discovered the oil in paying quantities.

(C) The word means that Cobalt Oil is a party to the suit, though it is not mentioned in the deed under litigation.

(D) The word is used to describe the retention of a deposit of property by a third party, a right of possession, or money claimed by two or more others while it is contested between them.

Solution: A stakeholder is a third party who holds the deposit, as in a wager, until the outcome of some event clarifies which of the contesting parties has the final right to the deposit.

Answer is (D)

93. Mr. Brown contended that the final clause of the deed was ambiguous. The court did not uphold that contention. Which of the following could be a consequence of the decision on that point?

(A) Mr. Brown's contention of a mutual mistake would be upheld.

(B) Mr. Brown's contention that the grant was limited to 20 years would be upheld.

(C) Mr. Brown's attorney would be allowed to present parol testimony and other extrinsic evidence to clarify the meaning of the language of the deed.

(D) Mr. Brown's attorney would not be allowed to present parol testimony and other extrinsic evidence to clarify the meaning of the language of the deed.

Solution: When the court finds that the language of an instrument is not ambiguous, that is, that it does not contain patent ambiguities, parol testimony intended to alter the language involved cannot be presented.

Answer is (D)

94. Among the testimonies that Mr. Brown wished to present were statements concerning the writing of the deed. Witnesses would have told the court that Mr. Brown was inexperienced in such matters. Apparently, Mr. Brown told Mr. Toy he would convey an interest in the mineral royalty only if it was limited to 20 years. It was Mr. Toy who actually had the conveyance drafted, and he assured Mr. Brown that the grant was so limited. If the court accepted this as the truth of the matter, which of the following principles might have been overturned for this case?

(A) A deed will be construed against the scrivener.

(B) When there is doubt as to the proper construction of a deed, it should be construed against the grantor.

(C) The construction of an unambiguous instrument is a question of law and not of fact.

(D) The intention of an instrument is to be gathered from its four corners; that is, from the instrument as a whole.

Solution: The principle that a deed will be construed against the grantor is predicated on the presumption that the language is that of the grantor. However, if the grantor did not prepare the deed, the court may not abide by this principle. In fact, mineral leases are often an exception to this principle.

Answer is (B)

95. If the language of the deed was held to be unambiguous by the court, which of the following statements is correct?

(A) Mr. Brown is correct; the stipulation of 20 years applies to the grant. It expired in 1974.

(B) Mr. Toy's contention is correct; the deed granted a fee simple absolute title to the interest in the oil proceeds. The 20-year stipulation applied only to the warranty of the deed and not the grant.

(C) The deed is void for uncertainty.

(D) The language of the deed is unambiguous, but it does not reflect the intention of the grantor, Mr. Brown. That intention is the most important consideration in its comprehension. The court must reform the deed to reflect Mr. Brown's intention before passing judgment on the meaning of the 20-year stipulation.

Solution: The intentions of the parties to a deed, as expressed in the writings, are the prime consideration. The grantor's intention cannot be inferred from statements he may make after the deed is written; it must be expressed in the instrument itself. Since the language is ruled to be unambiguous, the 20-year limitation applies only to the warranty and not to the grant. The placement of the 20-year limitation at the very end of the instrument in the *habendum* clause prevents its application to the granting clause.

Answer is (B)

The following five problems refer to the outlined case.

An action was filed in district court by Fred Hale against Edward Pitt to quiet title to land bought by Mr. Hale from Margaret Pitt, the defendant's sister.

Both parties rely upon the prior title of Alice Pitt, the mother of Edward and Margaret Pitt, and both claims involved in the dispute stem from her ownership.

Alice Pitt was a widow with extensive land holdings. In 1950 she made out deeds to each of her 10 children. All of her land was then platted and divided on the plats, and each tract was assigned a number. The sons and daughters drew lots to determine who would receive which lot, and a deed was made out to each according to the number drawn. The deeds were not immediately delivered to the sons and daughters. They were to be held in a safe-deposit box until Alice Pitt became terminally ill.

In June 1950, Alice Pitt, then 90 years of age, became ill and was taken to the home of her daughter Lenore. During this illness, two of Mrs. Pitt's daughters were sent to the safe-deposit box to bring her the deeds. Mrs. Pitt then handed all of the deeds to Lenore and instructed her to deliver them, after Mrs. Pitt's death, to the named grantees. Lenore put the deeds in a bureau drawer in the room where her mother lay ill; they remained there until Mrs. Pitt's death. Lenore claims she then delivered the deeds as instructed.

Apparently, not all of the land that belonged to Alice Pitt was covered by the deeds. There was also some overlapping and other discrepancies that appeared in the deeds as given. Among these discrepancies, the north boundary of the land deeded to Jane Pitt was found to overlap the south boundary of the land deeded to Margaret Pitt. Furthermore, the description of the land conveyed to Jane Pitt, if followed strictly, failed to close and actually extended to the east onto property not owned by Alice Pitt.

Subsequently, Edward Pitt purchased his sister Jane's tract and 6 years later Fred Hale purchased Margaret Pitt's tract. It was at this point that the present controversy arose regarding the overlapping area, which included approximately 5 ac between the two parcels.

The district court found that the deeds were void because there had been no delivery of the deeds from Alice Pitt to her children. Consequently, the court found that neither the plaintiff nor the defendant owned the property; instead, it belonged to the estate of Alice Pitt. The plaintiff appealed the ruling.

96. The facts of the case indicate that the grantor, Alice Pitt, placed the deeds in the hands of a third party, Lenore Pitt, for delivery after the grantor's death. This action placed Lenore in what role with regard to all of the deeds?

(A) grantor
(B) testator
(C) trustee
(D) grantee

Solution: Regarding the deeds, Lenore was placed in the position of trustee by her mother. An administrator is appointed by a court to handle the assets and liabilities of a decedent.

Answer is (C)

97. Prior to the appeal, which of the parties to the original action was the plaintiff?

(A) Edward Pitt
(B) Lenore Pitt
(C) Fred Hale
(D) Lenore and Jane Pitt

Solution: Fred Hale brought the action before the court. He was the plaintiff.

Answer is (C)

98. The court of appeal overturned the lower court's decision and held that the deeds in question were in fact delivered. The appellants next argued that the deed from the mother to Jane Pitt was void by reason of an erroneous description that failed to close. What would be the most likely response from the court?

(A) The lines of a description must be continuous, each line must begin where the other ends, and the final line must return to the point of beginning. Otherwise, the description as written does not close, and therefore does not describe a tract of land.
(B) The court will provide the missing line when doing so will close the approximate acreage called for in the description.
(C) In the construction of boundaries, the intention of the parties is the most important consideration.
(D) Both B and C are true.

Solution: In general, courts provide closure for descriptions that are deficit in that regard. There has been a strong desire to construe deeds so that they will be given effect and pass title, rather than be declared void. However, a description cannot be so vague that the parcel cannot be located at all.

Answer is (D)

99. Which of the following statements is most correct concerning the priority of the deeds in question?

(A) Fred Hale's deed is junior to Edward Pitt's. Mr. Hale's deed arises from the purchase of Margaret Pitt's land 6 years after Edward bought his sister Jane's tract.

(B) Edward Pitt's deed is junior to Fred Hale's since his title arose from within his family and he is entitled to the subsequent privity that implies.

(C) Fred Hale's deed must have priority since there is no cloud on the title he purchased from Margaret Pitt. However, Jane Pitt's title was clouded by its inclusion of land her mother did not own.

(D) There can be no preference of one title over the other between Fred Hale and Edward Pitt.

Solution: The two deeds were created simultaneously by Alice Pitt. Neither is senior to the other; they both have equal standing.

Answer is (D)

100. Assume that the court of appeal overturned the lower court's decision and held that the deeds in question were in fact delivered. Also assume that the deed from the mother to Jane Pitt was not void and that there is no question of seniority between the two deeds involved in the dispute. Which of the following answers is the most likely resolution of the overlap between Fred Hale and Edward Pitt?

(A) The overlap belongs to Fred Hale.

(B) They both own the overlap as a tenancy in common.

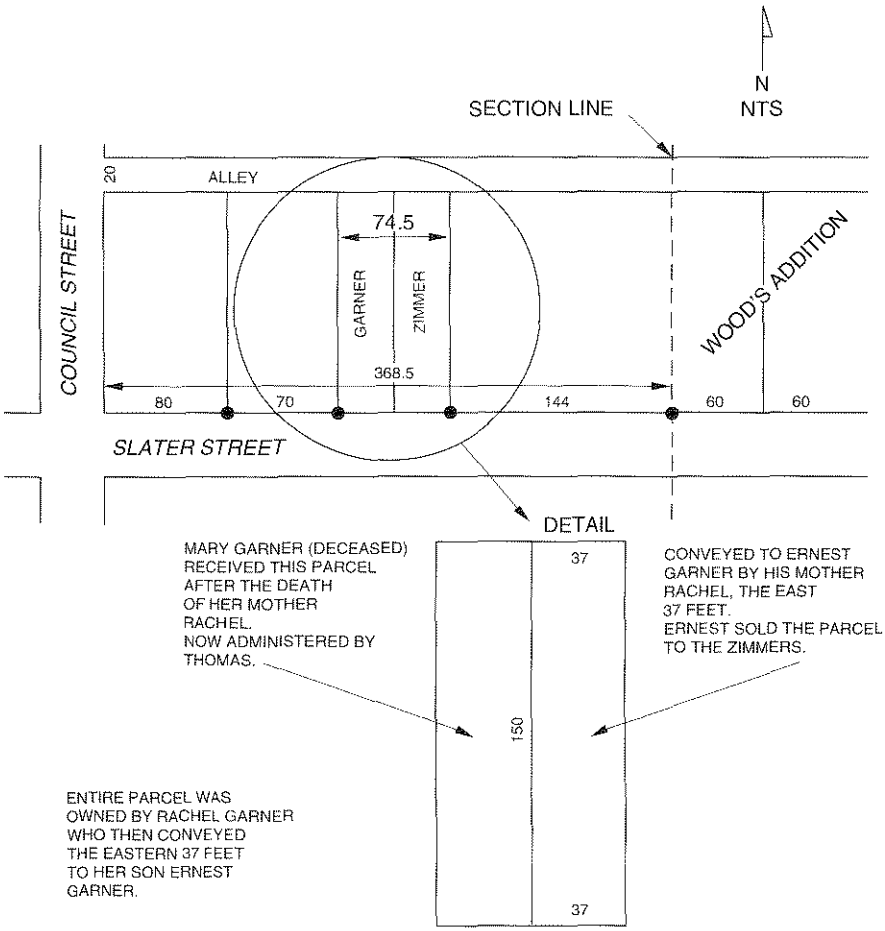
(C) The overlap remains in the estate of Alice Pitt.

(D) The overlap belongs to Edward Pitt.

Solution: The court would most likely hold that Hale and Edward Pitt hold title to the overlap as tenants in common. Each of them has an equal claim to the property and there is no priority of one deed over the other.

Answer is (B)

The following six problems refer to the illustration shown and the accompanying narrative.



Mary Garner died intestate and the administrator of her estate, M. Thomas, filed suit to quiet title. A decree was issued in his favor and the adjoining property owners, D. Zimmer and his wife, appealed.

The action involved a boundary dispute between tracts in a portion of Outlot 8 bounded on the west by Council Street, on the south by Slater Street, on the east by Wood's Addition, and on the north by a 20-ft alley as illustrated.

The city surveyor testified that the east line of the Outlot is the section line but that Council Street is not parallel to the section line due to convergence. He found four monuments, as shown, and made the measurements indicated, which were not contested. He measured from the southwest corner of Outlot 8, the northeast

corner of the intersection of Slater and Council Streets, and along the north side of Slater Street to a post at the southwest corner of Wood's Addition. He found the distance to be 368.5 ft. He found one monument 80 ft east and another 70 ft further east from the southwest corner of the Outlot. The latter monument, mentioned in the deed description, marks the southwest corner of Mary Garner's lot, which is now administered by Thomas. Further measurements reveal that the monument at the southeast corner of the Zimmer parcel mentioned in the description lies 144 ft west of the post at the southwest corner of Wood's Addition and 224.5 ft east of the southwest corner of Outlot 8.

The titles of the Zimmers and Mary Garner both stem from a common grantor, Rachel Garner—Mary Garner's mother. It has been suggested that she thought her property was 80 ft wide instead of 74.5 ft wide, as current measurement indicates. It has been further suggested that the error was the result of the description from Charles Schwarz to Rachel Garner that described her tract as follows:

> The SW$\frac{1}{4}$ of Outlot 8, except 150 ft square in the SW corner of said Outlot extending to the alley. Also commencing at the southeast corner of said SW$\frac{1}{4}$ of said Outlot 8, thence north to the alley, thence east to the west line of lands sold by Jacob Baum to Mark Crandall, thence south to Slater Street, thence west to beginning, the intent being to convey all the land 80 ft wide between the lands conveyed by me to K. L. Larson and the land conveyed from Baum to Crandall.

No record was found of the lands sold by Jacob Baum to Mark Crandall.

Subsequently, Rachel Garner sold to D. Zimmer, "37 ft off the east side of the piece of ground that is described in the deed of Rachel Garner."

M. Thomas, as administrator of Mary Garner's estate, prayed that the title be quieted as follows:

> Commencing 150 ft east of the southwest corner of Outlot 8, thence east 43 ft to the west line of the land sold to D. Zimmer, thence north 150 ft to the south line of the alley, thence west along the south line of said alley to a point due north of the point of beginning, thence south to the beginning.

The original trial court so decreed, but reduced the recited width from 43 ft to 41 ft. The Zimmers appealed the decision.

101. What was the width of the lot before Rachel Garner sold the east 37 ft to Zimmer, and what is the best supporting evidence of that width (or is the width important to the question at all)?

(A) The width of the lot was 80 ft, as described in Rachel Garner's deed.

(B) No record exists of the lands sold by Jacob Baum to Mark Crandall, and the southwesterly 150 ft of Outlot 8 is an ambiguous description. Therefore, the parcel was 80 ft wide as stipulated.

(C) The description of the southwesterly 150 ft is not ambiguous and is supported by the city surveyor's measurements. The fact that no deed is recorded regarding the conveyance of Jacob Baum to Mark Crandall does not alter the evidence of the current measurements. The parcel was 74.5 ft wide.

(D) The best available evidence indicates that the lot was 74.5 ft wide, but the width is not a critical consideration in resolving the boundary dispute between the two parties.

Solution: Rachel Garner's deed described a remainder after previous tracts were excepted. The width of the parcel was mentioned as 80 ft, but that call is merely informative as it is dependent on senior conveyances. However, the actual width of the parcel is not a central question in the resolution of the boundary dispute between the estate of Mary Garner and the Zimmers.

Answer is (D)

102. Assuming that the section line forming the western boundary of Wood's Addition is a cardinal line, what was the direction of the western boundary of Mary Garner's lot prior to the court case?

(A) There is not sufficient information available to make any assumption about the direction of the western line of Mary Garner's lot.

(B) The western line of Mary Garner's lot is parallel with the western boundary of Outlot 8.

(C) The western line of Mary Garner's lot is a cardinal line.

(D) The western line of Mary Garner's lot is on an average bearing between the eastern boundary of Council Street and the section line.

Solution: The language in Rachel Garner's deed describing the 150-ft square implies that the eastern boundary of that square is parallel with the western

boundary of Outlot 8. If the section line is cardinal, the western boundary of Mary Garner's lot cannot also be cardinal since the city surveyor testified the line and the boundary were not parallel due to convergence.

Answer is (B)

103. What statement can be made concerning the direction of the line between the Zimmers' and Mary Garner's lots?

(A) It must be a cardinal line.
(B) It is parallel with the Zimmers' eastern boundary.
(C) It is parallel with the western boundary of Outlot 8.
(D) It is parallel with the eastern line of Council Street.

Solution: The boundary in question was created in Rachel Garner's deed to the Zimmers, which calls for 37 ft off the east side. The implication is that the lines bounding the 37 ft on the east and west are parallel.

Answer is (B)

104. During the proceedings, it was proposed that the most equitable solution to the disagreement was to proportion the 74.5 ft between the lots. Which statement best describes the merit of this proposal?

(A) The proposal is equitable. The estate of Mary Garner would receive 37.7 ft and the Zimmers would receive the remainder.
(B) The proposal is equitable. The estate of Mary Garner would receive 40.5 ft and the Zimmers would receive the remainder.
(C) The use of proportioning is restricted to simultaneous conveyances and this suit involves a sequential conveyance of property. Mary Garner's estate has senior rights in this situation and should receive the full 40 ft originally intended by Rachel Garner.
(D) The use of proportioning is restricted to simultaneous conveyances and this suit involves a sequential conveyance of property. Proportioning should not be used to resolve this dispute.

Solution: The use of proportionate measurement is not appropriate to sequential conveyances of the type described in this case.

Answer is (D)

105. During the proceedings, the Zimmers pointed out that a fence had stood along a line 37 ft west from their eastern boundary for 15 years and that the fence was moved to this position by Mary Garner herself. The Zimmers contributed to the cost of the fence and contend that it constitutes a practical location of the boundary. M. Thomas countered by saying that the Zimmers had exercised undue influence on the elderly Mary Garner by urging her to move the fence 2.5 ft west from where it had stood for 25 years. What doctrine might M. Thomas cite to support his position on the question of the fence?

(A) recognition and acquiescence
(B) eminent domain
(C) prescription
(D) estoppel

Solution: M. Thomas might wish to cite the doctrine of estoppel. The Zimmers may have influenced Mary Garner to move her fence to her detriment by alleging the boundary that had stood for 25 years was incorrect. Their claim of practical location might then be estopped.

Answer is (D)

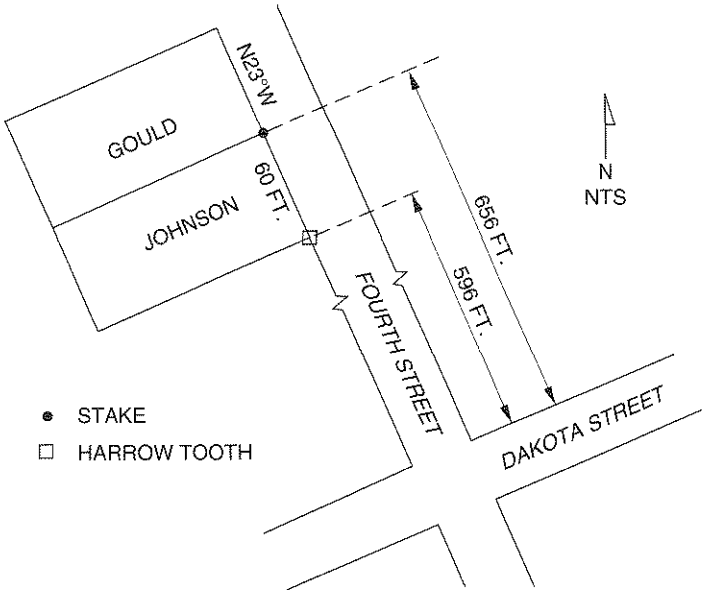
106. What role, if any, does senior rights play in this case?

(A) There are no senior rights in this situation between the Zimmers and the estate of Mary Garner.
(B) The Zimmers have senior rights and are entitled to the full 37 ft in width.
(C) M. Thomas, administrator of Mary Garner's estate, is the holder of the senior rights and is entitled to a full width of 43 ft as intended when Rachel Garner conveyed the eastern 37 ft of 80 ft.
(D) There is an overlap of 2.5 ft between the two adjoining property owners and it is still vested in the estate of Rachel Garner, now held by M. Thomas.

Solution: When two parties derive their titles to adjoining tracts from a common grantor and it is revealed that there is a shortage, the party claiming under the grantor's first deed need not contribute to the shortage. The Zimmers hold the first deed executed by Rachel Garner and are entitled to the full 37 ft stipulated in their deed. The estate of Mary Garner receives the remainder.

Answer is (B)

The following five problems refer to the illustration shown and the accompanying narrative.



May Johnson instituted a quiet title action regarding her lot on the southwest side of Fourth Street, which had been acquired from appellant George Gould by Mrs. Johnson's son Henry. The deed described the lot as follows.

> Beginning at a harrow tooth on the southwest side of Fourth Street distant N23°00′W 596.00 ft from the point of intersection of the southwest line of Fourth Street and the northwest line of Dakota Street, thence N23°00′W

> along said southwest line of Fourth Street 60.00 ft to a stake set at the common corner for lots 7 and 8.

Henry Johnson and his wife subsequently conveyed the lot to his mother, May Johnson, by a deed containing the same language.

The appellant, Mr. Gould, contended the description in the deed he signed was the result of a mutual mistake. He had intended to sell a lot with a frontage of 55.00 ft, not 60.00 ft. In support of his contention, the appellant presented the escrow instructions signed by both himself and Henry Johnson on the same date he conveyed the lot to Mr. Johnson. The description of the frontage in the escrow instructions were as follows.

> Beginning at a harrow tooth on the southwest side of Fourth Street distant N23°00′W 596.00 ft from the point of intersection of the southwest line of Fourth Street and the northwest line of Dakota Street, thence N23°00′W along said southwest line of Fourth Street 55.00 feet to a stake set at the common corner for lots 7 and 8.

Mr. Gould conceded that this description was inconsistent with the actual distance between the harrow tooth and the stake. He contended that the bank holding the escrow resolved the discrepancy to reflect the actual distance between the monuments without consulting the parties to the deed. He further contended that he was not aware of the discrepancy or of the alleged mistake in the deed because he could not read.

The evidence presented to the court showed that the respondent, May Johnson, lived in the house on the lot and that if the boundary Mr. Gould advocated was accepted, her house would be too near the property line to satisfy local setback ordinances. The appellant testified that the respondent had agreed to move the house at her expense.

Mr. Gould testified that he did not wish to sell the 60.00 ft because it would include part of his driveway and require him to remove several trees.

Mrs. Johnson countered that there had been no conversations regarding her house or a frontage of 55.00 ft. She further testified that she had tried to construct a fence on the boundary in question and that Mr. Gould had torn it down. She said she had not attempted to reconstruct the fence because of death threats from Mr. Gould.

In his appeal, Mr. Gould requested that the court overturn the lower court's affirmation of the deed description and reform the deed to conform with the escrow instructions.

107. What is the meaning of the term *mutual mistake* as used in this case?

(A) Mr. Gould contended that the escrow holder was mistaken in the presumption that Mr. Gould had read and understood the deed description, and that he was himself mistaken in trusting that the deed correctly described the property he intended to sell.

(B) The mutual mistake was the misunderstanding shared by Mr. Gould and Henry Johnson concerning the frontage of the lot. Mr. Gould believed it was 55.00 ft and Henry Johnson believed it was 60.00 feet.

(C) Mr. Gould was mistaken in believing that the actual dimension between the harrow tooth and the stake was 55.00 ft; Henry Johnson was mistaken in believing that the actual dimension of 60.00 ft was what Mr. Gould intended to convey.

(D) The mutual mistake was the misunderstanding shared by Mr. Gould and Henry Johnson concerning the frontage of the lot. Both believed the deed specified that the lot was to have a frontage of 55.00 ft.

Solution: A mutual mistake occurs when both parties to a deed share the same misconception. When the deed in its written form does not reflect the intentions of the parties to the deed and the two parties are in agreement as to what it should have said, there is a mutual mistake.

Answer is (D)

108. Could the deed between Mr. Gould and Henry Johnson have been considered void; if so, on what grounds?

(A) Yes, Mr. Gould was under a disability. One of the requirements for a valid deed is competent parties. He was not competent to convey property because he could not read.

(B) No, the fact that Mr. Gould could not read does not render him incompetent to convey property.

(C) Yes, one of the requirements for a valid deed is that it be read. Mr. Gould may be competent to convey property, but by his own testimony, he did not read the deed.

(D) Yes, the escrow agreement was changed without notification of the parties involved, which automatically voided the conveyance.

Solution: A disability in legal terms is an incapacity such as insanity, being underage, or a felony conviction that prevents the enjoyment of normal rights. An inability to read is not such a legal disability.

Answer is (B)

109. It was revealed in the testimony that Mrs. Johnson had paid the property taxes in accordance with her deed and that Mr. Gould had never attempted to pay the taxes on the disputed 5-ft strip of property. What issue may have been raised in the case that would have caused this fact to become important?

(A) the possible criminality of the alleged death threats to Mrs. Johnson attributed to Mr. Gould

(B) the possible violation of local setback ordinances that would arise from the reformation of the deed proposed by Mr. Gould

(C) the ripening of unwritten rights supporting Mr. Gould's claim on the disputed 5-ft strip

(D) possible monetary damages as compensation for the loss of Mr. Gould's trees and driveway

Solution: The payment of taxes is often cited in cases where the question of adverse possession is raised. Mr. Gould may have contemplated such a claim based on the location of his trees and driveway.

Answer is (C)

110. Assume that the 60.00 ft stipulated as the frontage of Mrs. Johnson's lot remained in the deed, but the actual distance between the monuments had been 55.00 ft. Would the distance or the monuments prevail, and why?

(A) The 60.00 ft would have been considered locative regardless of the actual distance between the monuments.

(B) The monuments would have prevailed and Mrs. Johnson's lot would have had a frontage of 55.00 ft because the deed description contained the phrase "to a stake set at the common corner of lots 7 and 8."

(C) The deed must be construed from its four corners, and such a patent ambiguity would void the deed entirely.

(D) A harrow tooth cannot be considered a proper monument for a lot corner, so the distance would have prevailed.

Solution: Monuments called for in the deed and positively identified are controlling; the distances cited are considered merely descriptive.

Answer is (B)

111. Mr. Gould testified and presented evidence that the deed did not reflect his intentions regarding the conveyance of the lot. What importance does this evidence have in the disposition of the case?

(A) The first and foremost rule in construing deeds is that they must reflect the intention of the parties to the conveyance. The language in the deed was not the language that the grantor intended, but Mr. Gould was not aware that that was the case because he could not read. He should not be bound by language over which he had no control. The deed should be reformed by the court.

(B) The intentions of the grantor are paramount, but only as reflected in the language in the deed. The deed should not be reformed by the court.

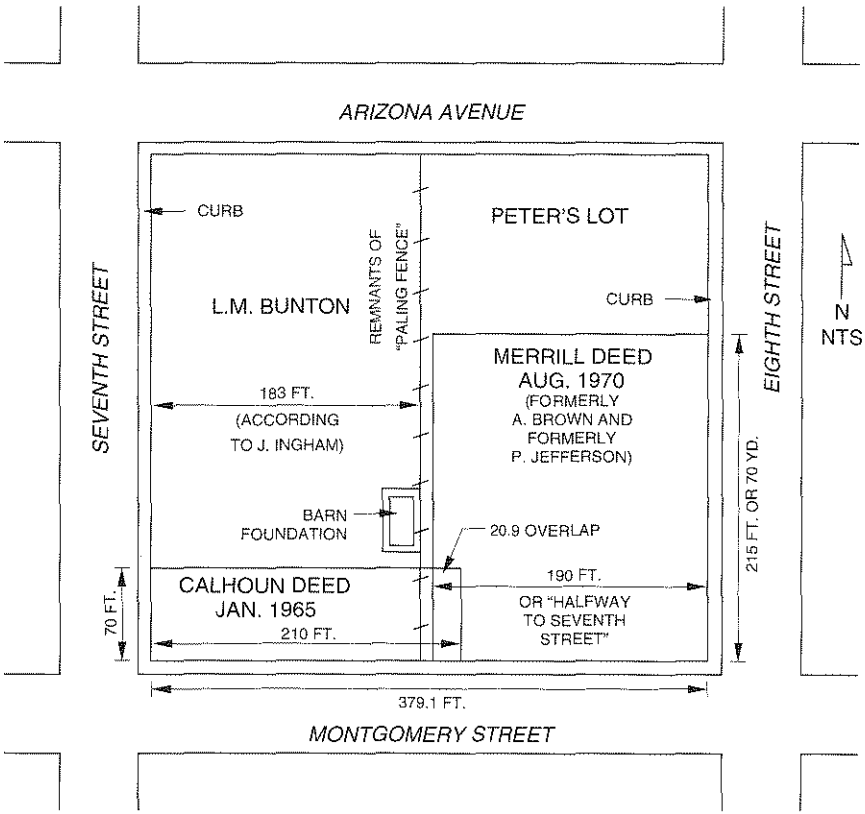
(C) The intention of the grantor was expressed by the monuments on the ground and the dimensions between them recited in the deed. The grantor cannot be permitted to alter such an unambiguous deed description with testimony.

(D) Both B and C are true.

Solution: The intention of the grantor as expressed in the deed's language is paramount; an unambiguous description cannot be changed by subsequent testimony.

Answer is (D)

The following five problems refer to the illustration shown and the accompanying narrative.



The appellant in this case, H. Calhoun, appealed a decree from a lower court establishing the boundary line between himself and R. Merrill. Both derived their titles from a common source, P. Jefferson. Mr. Jefferson conveyed directly to the appellee, R. Merrill; the appellant traces his title to Jefferson through three mesne conveyances.

Both parcels front on Montgomery Street. The measurement from the back of the curb at Seventh Street to the back of the curb at Eighth Street is 379.1 ft.

Mr. Calhoun's deed calls for 210 ft along Montgomery Street and Mr. Merrill's deed calls for 190 ft. Hence, there appears to be an overlap of 20.9 ft.

Mr. Calhoun contends that the appellee built a fence on his property and asked the court to adjudicate their boundary. Mr. Merrill countered that he had built the fence on the correct boundary line, west of where the appellant asserted it to be. Mr. Merrill contended that the west line of his property was the west line of the A. Brown lot, which was well defined on the ground.

Mr. Calhoun's deed, dated January 1965, describes his property as follows.

> Beginning at the southwest corner of the lot owned by L. M. Bunton; thence along the east side of Seventh Street 70 ft to Montgomery Street; thence east along the north side of Montgomery Street 210 ft; thence north along the west boundary of the lot formerly owned by A. Brown, now owned by P. Jefferson, 70 ft; thence west 210 ft parallel with Montgomery Street to the starting point. Said lot containing one-third acre.

Mr. Merrill's deed, dated August 1970, describes his property as follows.

> Commencing at the crossing of Eighth Street and Montgomery Street and thence halfway to Seventh Street; thence north 70 yd to a lot now known as Peter's lot; thence east to Eighth Street; thence south back to the starting point, containing 1 ac more or less.
>
> Said lot more particularly described as follows: Commencing at the northwest corner of Eighth Street and Montgomery Street, thence northward along the west boundary of Eighth Street 215 ft to Peter's lot; thence westward along the line of Peter's lot and parallel with Montgomery Street 190 ft; thence southward parallel with Eighth Street along the west boundary of the lot formerly owned by A. Brown 215 ft to the north boundary line of said Montgomery Street; thence eastward along the north boundary line of Montgomery Street 190 ft to the starting point.

The lower court found in favor of the appellee, Mr. Merrill. Mr. Calhoun appealed the decision.

The appellant contended that the court issuing the decree under appeal had erred by using a fictitious monument in fixing the boundary. This contention stemmed from the following paragraph in the decree.

> It is decreed by this court that the true boundary between the Calhoun lot and the Merrill lot begins at the northern extremity of the old brick

foundation of a barn once located thereon near the southeast corner of the L. M. Bunton lot. Said boundary then extends south along said brick foundation. The boundary subsequently follows the old rusted wire fence and rotten or decayed fence posts above and below the surface of the ground to Montgomery Street.

L. M. Bunton was called as a witness for the appellee and testified that he had purchased the lot north of the Calhoun lot in 1937 and had lived on it for several years. He said he had built a cypress picket fence from the southeast corner of his lot north to Arizona Avenue. Additionally, he had built a brick foundation for the barn that stood at his southeast corner, and there was a fence that had extended from the barn to the north side of Montgomery Street. He testified that he did not know if the fences were still up or not, but that the barn foundation was still in place.

B. Cooper, a witness for the appellee, testified that he had for many years cultivated the land up to the fence that extended both north and south from the barn mentioned by Mr. Bunton.

The appellee testified that he had erected his fence along the brick foundation of the barn south to Montgomery Street, following the old fence posts that had rotted to the ground.

Mr. Calhoun testified that he had possessed the 210 ft called for in his deed and that no one had pointed out the boundary lines when he purchased the property. He further testified that he had no knowledge of the A. Brown lot, except that it was mentioned in his deed and that there had been no fence extending south to Montgomery Street when he bought the lot.

J. Ingham, a surveyor, testified that he found no evidence of a fence on the line claimed by the appellants, but that he did find evidence of a boundary line 183 ft east of the back of the curb on Seventh Street. This boundary evidence was an extension of the line of a paling fence running south from Arizona Avenue on the Bunton property. Mr. Ingham further testified that he could find no information as to the width of Seventh Street or Eighth Street before the curbs were installed.

112. What is meant by the term *mesne conveyances* in this case?

(A) The term refers to unrecorded deeds.
(B) Mesne conveyances are intervening instruments.
(C) Mesne conveyances are deeds that have been voided.
(D) Mesne conveyances refer to instruments that give color of title.

Solution: The word *mesne* is used to describe intermediate or intervening profits, assignments, and other processes. Here, the term *mesne conveyances* means that intervening deeds were executed between P. Jefferson's ownership and Calhoun's ownership of the lot.

Answer is (B)

113. The description of Mr. Merrill's property contains several contradictions. For example, the call for 70 yd contradicts the call for 215 ft. How should this be resolved?

(A) The call for 70 yd occurs earlier in the description than does the call for 215 ft and should, therefore, have priority.
(B) The more particular description should prevail over the more general one. The 215 ft occurs in the more specific section of the description and should be used over the more general call for 70 yd.
(C) Neither the 70 yd nor the 215 ft need be of critical importance as long as the parcel known as Peter's lot can be located with certainty.
(D) Both B and C are true.

Solution: The more specific description will most often prevail. The measurements of 70 yd and 215 ft may be considered of comparable precision, but the latter occurs in a section of the description that begins, "more particularly described as follows ..." However, as long as the location of Peter's lot can be ascertained, neither measurement is critical.

Answer is (D)

114. What role, if any, does senior rights play in the location of the boundary between Mr. Calhoun and Mr. Merrill?

(A) The deeds of the two property owners both stem from the same grantor. Since Mr. Calhoun's deed predates Mr. Merrill's, the first deed need not contribute to any discovered shortage.

(B) The deeds of the two property owners both stem from the same grantor and Mr. Calhoun's deed predates Mr. Merrill's. However, while the deeds may furnish the means of locating the particular boundary between them, the actual location of that boundary is an independent inquiry.

(C) The description in Mr. Calhoun's deed calls for the west boundary of the adjoining A. Brown lot. The A. Brown lot must have priority over Mr. Calhoun's parcel.

(D) Both A and C are true.

Solution: The Calhoun deed was issued before the Merrill deed and they both call for the boundary of the A. Brown lot. However, this fact by itself does not settle the question of the location of the eastern boundary of the Calhoun property. A call for an adjoiner does not always imply that the record monument will prevail.

Answer is (B)

115. What significance, if any, do the widths of Seventh and Eighth Streets have in the resolution of the boundary dispute between Merrill and Calhoun?

(A) Seventh Street is a record monument called for in Mr. Calhoun's deed. If the eastern boundary of Seventh Street has moved since his deed was written, then the eastern boundary of his lot has moved with it.

(B) Seventh and Eighth Streets are both record monuments called for in Mr. Merrill's deed. If the streets have been widened since his deed was written, this may have caused his western boundary to overlap Mr. Calhoun's property.

(C) Even if Seventh and Eighth Streets have been widened since the two deed descriptions in question were written, the boundaries near the middle of the block would not have been altered.

(D) Both A and B are true.

Solution: It is clear from the conveyances from P. Jefferson to Calhoun and Merrill that Mr. Jefferson or his predecessors believed the block from Seventh to

Eighth Street was 400 ft long. Should those streets have been widened and that 400 ft thereby reduced to 379.1 ft, the apparent overlap may be explained by Calhoun's and Merrill's reliance on the distances recited in their deeds. However, the boundary shared by Calhoun and Merrill cannot have been moved by such street widening. If the overlap did not exist before the streets were widened, it cannot exist after such a change. The distances in both deeds are informative only since their common boundary is described as the west boundary of the lot formerly owned by A. Brown.

Answer is (C)

116. Mr. Calhoun contends that he is in possession of the senior deed and that he should be entitled to the entire 210 ft of frontage along Montgomery Street called for in his deed description. Is he right or wrong, and what is the principle underlying the answer?

(A) Mr. Calhoun is right. He possesses the senior right and even though a call for a record monument (the west line of the A. Brown lot) is included in his deed, his senior right is superior to such a call.

(B) Mr. Calhoun is wrong. While his senior right can overcome the call for 190 ft in Merrill's deed, it cannot prevail over the remains of the fence extending south from the old barn foundation. Testimony and the apparent acceptance of the fence for 28 years before his deed was executed is the best evidence of the position of the west line of A. Brown's lot, which is the east boundary of his property.

(C) Mr. Calhoun is right. P. Jefferson owned both of the parcels in question. He first conveyed the lot owned by Calhoun and created a boundary 210 ft east from the east line of Seventh Street. Mr. Calhoun is entitled to rely on that boundary.

(D) Mr. Calhoun is wrong. The call for the west line of the A. Brown lot is not merely a call for that line alone, but for the entire A. Brown tract. The determination of the position of that tract must depend on the deed description included in the Merrill deed. The Merrill deed contains several patent ambiguities and should be considered void. Therefore, Mr. Calhoun's deed is void for uncertainty as well.

Solution: The critical consideration here is the position of the west boundary of the A. Brown lot. The parcels now owned by Calhoun and Merrill existed as separate entities long before P. Jefferson owned them. When Mr. Jefferson conveyed them to the present proprietors, he described their common boundary

as the west line of the A. Brown lot. The best evidence of the position of that line is the old barn foundation and the remains of the old fence.

Answer is (B)

The following three problems refer to the narrative given.

This is an appeal from a judgment in favor of the plaintiff in an action brought to quiet title arising from conflicting interpretations placed on a warranty deed.

The grantors and defendants, the Andersons, allege that the warranty deed reserved to them a one-half interest in the oil and gas estate, plus the fee interest in all other minerals located on or beneath the surface. The grantees and plaintiffs, the Footes, claim title to the fee interest in the surface and mineral estates, except for a one-half interest in the oil and gas estate reserved by the defendants.

At the trial, the parties stipulated that the only evidence admissible would be the deed on which the interest rests. Therefore, the only question is whether the trial court was correct in the construction of the deed.

The deed, dated May 1954, makes the following recitation.

> Grantor L. Anderson and her husband E. R. Anderson ... convey and warrant to H. Foote and K. Foote, his wife, as joint tenants and not as tenants in common with full rights of survivorship ... the following described real estate, to wit.
>
> The SW$\frac{1}{4}$ of the SW$\frac{1}{4}$ of Section 5, Township 5 South, Range 7 West of the Bolton Meridian and containing 40 ac more or less. Subject to an easement for a roadway 20 ft wide along the north side of said lands.
>
> Reserving unto the grantors the undivided one-half interest to all oil and gas in and under and that may be produced from the above-described lands, together with the right of ingress and egress at all times for the purpose of mining, drilling, exploring, operating, and developing said lands for oil, gas, and storing, handling, transporting, and marketing the same therefrom.
>
> It is the intention of the grantors to convey an undivided one-half interest in and to all of the oil and gas that may be produced from the above-described lands, also the surface of the described lands.

The court that heard the original action found for the plaintiffs; the defendants appealed the decision.

117. What sort of interest in the surface estate is conveyed by the granting clause of the deed description quoted?

(A) Both grantees hold the surface estate together as an undivided interest and should one of them die, the other would automatically acquire the entire surface estate.

(B) Both grantees hold the surface estate together as an undivided interest and should one of them die, that person's interest would automatically pass to their heirs.

(C) Both grantees hold the surface estate, but should one of them die, that person's interest would automatically revert to the grantor.

(D) Both grantees hold the surface estate, but should one of them die, the entire surface estate would automatically revert to the grantor.

Solution: The Footes hold the surface estate as joint tenants. As such, the death of one of them would cause that person's interest to automatically become vested in the other person.

Answer is (A)

118. What sort of interest in the mineral estate is conveyed by the granting clause of the deed description quoted?

(A) The mineral estate is not specifically mentioned and therefore is reserved to the grantor. It does not pass to the grantee.

(B) The mineral estate is not specifically mentioned and therefore the minerals are conveyed to the grantee, except in and under the easement across the northerly 20 ft of the tract.

(C) The mineral estate is not specifically mentioned and therefore the minerals are conveyed to the grantee.

(D) The mineral estate cannot be conveyed by deed. It must be conveyed by a mineral lease.

Solution: The mineral estate is conveyed to the grantee unless it is specifically excepted.

Answer is (C)

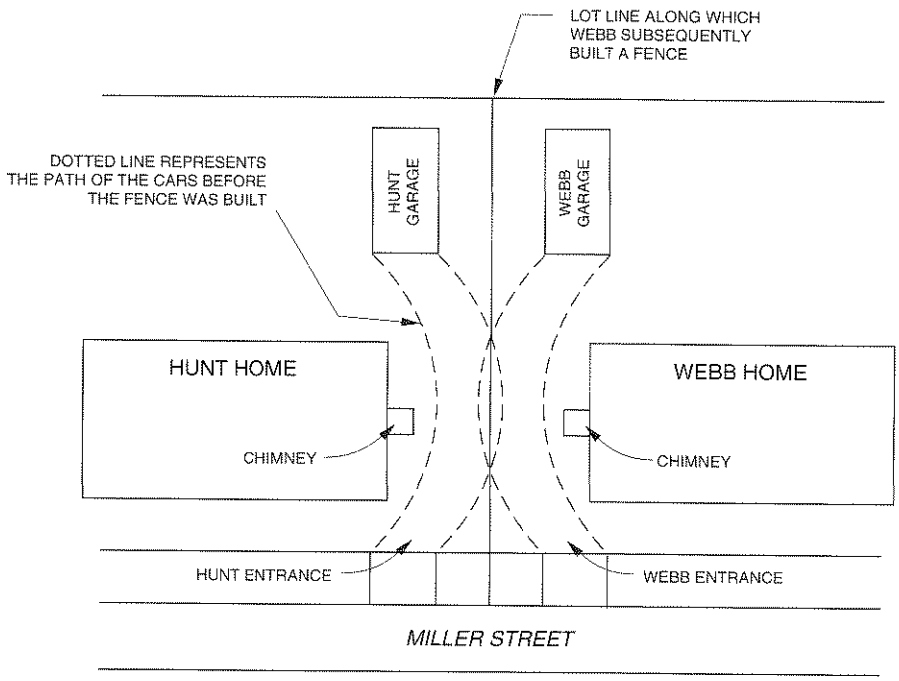
119. How does the last clause beginning "It is the intention of the grantors . . ." affect the conveyance to the grantees?

(A) The last clause does not alter the effect of the preceding paragraphs.
(B) The last clause prevents the passing of the mineral estate to the grantees.
(C) The last clause expresses the intent of the grantors, which is the primary consideration in construing the meaning of a deed.
(D) The last clause voids the entire deed.

Solution: The last clause expresses the intention of the grantors to convey one-half of the oil and gas and the entire surface estate to the grantees. This has already been accomplished by the granting and reservation clauses. The absence of any mention of the mineral estate in the last clause does not prevent the estate from passing to the grantee.

Answer is (A)

The following five problems refer to the illustration and the accompanying narrative.



This case involves a dispute between two neighbors, the Hunts and the Webb over a driveway. The plaintiffs, the Hunts, claimed an easement over a strip (land 6 ft wide on the Webbs' property. After an equity action, the court foun against the plaintiffs and denied the easement. The Hunts appealed the decisio

The difficulties between the neighbors began when the Webbs erected a fenc along their west line. There is no dispute between the parties regarding th location of the lot line. However, with only $6\frac{1}{2}$ ft between the chimney on th east side of the Hunts' house and the Webbs' fence, the Hunts did not have enoug room to comfortably drive their car through to their garage. Nevertheless, th Hunts did not commence the action until 5 years after the fence was constructec

The driveway entrances from the street are separate and distinct. The only plac the neighbors found it necessary to drive onto the others' property was wher they veered to clear the chimneys that extended from the sides of each of thei houses, as illustrated.

The Hunts claim an easement by prescription over the Webbs' property. The stat in which this claim was made requires that prescriptive easements be acquire by use that is continuous for a statutory period of 10 years under claim of right and that the use be open, notorious, and hostile. Additionally, the state require that the claimant formally notify the party against whom the claim is made prio to the running of the statutory period.

The Hunts called several witnesses who had lived in the house they now occup and established that the use of the driveway had been as illustrated for 38 years These witnesses further testified that they had no conversations with their neigh bors about the use of the driveway since the use was never questioned. Th Webbs testified that they had no communication with the Hunts regarding thei driving on the Webbs' property prior to the construction of the fence.

The Webbs widened their driveway by removing their chimney and then built a fence along the property line. When Mrs. Hunt saw the post holes the Webbs hac dug, she filled them and had her attorney call the Webbs to inform them tha she objected to the fence. Nevertheless, it was constructed, and 5 years elapsec before the Hunts issued a written notice to the Webbs demanding a quitclain deed granting them an easement. The Webbs refused and the Hunts immediately filed their action in court.

120. What is the meaning of the phrase "claim of right" as applied to this case?

(A) the Hunts' initial filing of a suit to acquire the easement rights
(B) the Webbs' construction of a fence on the property line
(C) the Hunts' demand for a quitclaim deed from the Webbs
(D) the Hunts' belief that they were entitled to the easement right they exercised for many years across the Webbs' property

Solution: Claim of right rests on the intention of the claimant in a matter of prescription. An example of this is the Hunts' belief that they had a full right to use the driveway that extended onto the Webbs' property as their own.

Answer is (D)

121. What is the meaning of the phrase "open and notorious" as applied to this case?

(A) The Hunts must have used the easement across the Webbs' property in such a way that the Webbs could reasonably be expected to have known that their property was being used in a manner inconsistent with their ownership. This would have provided the Webbs with the opportunity to take measures to prevent the Hunts from using the property improperly.
(B) In the state where the case occurred, the notorious aspect must include formal notification of the Webbs, not merely constructive notice alone.
(C) The Hunts should have constructed a fence of their own 6 ft across the property line on the Webbs' parcel in order to establish their claim in an open and notorious manner. Their use of the easement alone is not sufficient.
(D) Both A and B are true.

Solution: The Hunts did not need to fence the property involved to satisfy the requirement of open and notorious use. They did not intend to acquire a fee interest in the 6-ft strip of land, but merely an easement right across the land. However, they were required to formally notify the Webbs in the state where the action was filed. While open and notorious use may be sufficient for constructive notice in many states, here constructive notice alone was not adequate.

Answer is (D)

122. There are doctrines other than prescription by which an unwritten easement right may be acquired. Which of the following methods of procuring an unwritten easement might the Hunts have used?

(A) an implied easement
(B) a way of necessity
(C) estoppel easement
(D) common-law dedication

Solution: Both an implied easement and a way of necessity require a unity of title of the two parcels involved before their separation and the subsequent creation of the easement. A common-law dedication involves appropriation for use by the public. These conditions did not exist in this case. However, an easement by estoppel may have had some application in this case. The Hunts believed that the servitude imposed on the Webbs' property (the driveway) was a permanent condition. The Webbs did not object and allowed the Hunts to use the driveway for many years, as did their predecessors in title. The Hunts may have been able to claim that an easement by estoppel existed.

Answer is (C)

123. The Hunts alleged that the use of the driveway across the Webbs' property was continuous for 38 years. Assuming that this evidence was true, did it satisfy the requirement of continuous use for the statutory period?

(A) Yes, the statutory period in the state where the case was heard was 10 years.
(B) No, the use was not continuous; the Webbs used the same area of the driveway as well.
(C) Yes, the use of the driveway was intermittent, but since that was consistent with the very nature of such an easement right, the continuity was not disturbed.
(D) No, the statutory period did not run at all during the entire 38 years since the state law where the case was heard required express formal notification of the parties against whom the claim was made.

Solution: The Hunts did not formally inform the Webbs of their intention to possess the easement right across the driveway until 5 years after the Webbs

constructed their fence. The testimony of the Hunts' predecessors verified the absence of any formal notification between the neighbors for 38 years. Under the law of the state where the action was filed, the statutory period did not run at all.

Answer is (D)

124. Which of the following statements is correct regarding this case?

(A) The burden of proof was on the Webbs.
(B) The formal notice required by the state law occurred when Mrs. Hunt had her lawyer call the Webbs.
(C) The Hunts would have had a better case if they had claimed an easement by necessity rather than a prescriptive easement.
(D) The burden of proof was on the Hunts.

Solution: The burden of proof of a prescriptive easement was on the Hunts. Mrs. Hunt merely told the Webbs through her lawyer that she did not approve of their fence, not that the Hunts intended to claim an easement right. The payment of taxes is of no significance in an action to acquire an incorporeal right in property.

Answer is (D)

The following five problems refer to the narrative given.

This is an action to quiet title in a roadway on land formed by accretion along the Manterbrod River in Lamp City. The accretion land was originally platted as part of Lamp City between block 75 and the Manterbrod River. The plaintiff, Mr. Clark, acquired block 75 and the accretion land by a warranty deed, but the warranty was limited to "that part of said real estate that is not accretion land." The defendant in this action is the city of Lamp City.

The accretion land east of a high bank of the river was unenclosed, uncultivated land covered with brush, timber, and willows. A road ran north and south along the river on the most easterly portion of the accretion land. The evidence offered to the court indicated that the road had existed for 25 years before the action to quiet title was brought by Mr. Clark. The earliest use was by hunters, fishermen, and sightseers; however, 20 years before Mr. Clark's action, stabilization work

was done and the road began to be used by rock trucks. During the 11 years immediately prior to Mr. Clark's action, the road was used continuously by the public and was maintained by Lamp City.

The requirements for acquisition of an easement by prescription, as well as fee title by adverse possession in the state where Mr. Clark's action was brought, include adverse use that is open, notorious, hostile, and uninterrupted for a statutory period of 10 years. Claim of right is a rebuttable presumption in the ripening of adverse possession or prescriptive easement rights.

The lower court stated, "Lamp City and the public have maintained and used said road continuously and adversely for more than 10 years," and quieted and confirmed a fee simple absolute title to the road in Lamp City. Mr. Clark appealed the decision.

Mr. Clark contended that Lamp City had the power of eminent domain and was thereby barred from obtaining real property by adverse possession without just compensation. He also contended that Lamp City had accepted his payment of taxes on the land and was thereby barred from acquiring it by adverse possession.

Mr. Clark further contended that the fee simple absolute title awarded to Lamp City by the lower court was improper. The decree did not define a specific use for the road, and Mr. Clark argued that it is not necessary that a road acquired by prescriptive use be equal in all respects to the title that would result from a formal dedication.

125. Which of the following statements is most correct concerning Mr. Clark's contention that Lamp City was barred from acquiring the road by adverse possession when it could have exercised its power of eminent domain?

(A) Mr. Clark is correct. If property is to be taken for public use, compensation must be paid to the private land owner.

(B) The public acquired the right to the river road by continuous use. The individual members of the public did not have the power of eminent domain but, by their concerted action, created their right to the road now held by the city for the benefit of the public.

(C) At any time during the running of the statutory period of 10 years, Mr. Clark could have exercised his right to the roadway. His inaction during the statutory period contributed to the ripening of the public's right to the road.

(D) A and B may each be true depending on the state in which the action is taken. C is true in all jurisdictions.

Solution: The right of eminent domain may be exercised in the public interest; however, in this case, the acquisition of the road by other means is not barred by

that fact. Some states do bar governmental entities with the power of eminent domain from acquiring property by adverse possession.

Answer is (D)

126. Which of the following statements is most correct concerning Mr. Clark's contention that the acceptance of his payment of taxes on the property covered by the road prevents the city from acquiring the road by adverse possession?

(A) In most jurisdictions, the payment of taxes is an element that may be considered in establishing ownership in cases of adverse possession, but barring a statutory provision, it is not conclusive.

(B) The payment of taxes by Mr. Clark confirmed his dominion over the lands in question and prevented the running of the statute against him.

(C) The payment of taxes is not a consideration in cases of adverse possession.

(D) It was the acceptance of Mr. Clark's payment of taxes by the municipality rather than his attempt to pay them that confirmed his dominion over the lands in question and prevented Lamp City from having any claim of adverse possession.

Solution: In most jurisdictions (but not all), the payment of taxes and color of title are not absolute requirements in claims of adverse possession, but they are elements that the court may consider.

Answer is (A)

127. Assume that the court of appeals ruled that the lower court erred in granting a fee interest rather than an easement right in the road to Lamp City. Which of the following statements would be a justification for the higher court's ruling?

(A) The fee title to the road remains with Mr. Clark since the municipality is not entitled to a grant of greater interest than is essential for public use.

(B) All of the streets and roadways in Lamp City are held in trust for the purposes for which the street was dedicated as an easement right and not as a fee simple absolute.

(C) The easement was acquired by prescription rather than by adverse possession.

(D) All of the above are true.

Solution: All of the reasons given would point to the acquisition of an easement right by the municipality rather than a fee interest.

Answer is (D)

128. The foundation of Mr. Clark's ownership of the land in question was a warranty deed whose warranty did not cover the accreted land along the Manterbrod River. Why was the accreted land not covered by the warranty?

(A) Accreted land is unstable and may be easily eroded away.

(B) Accreted land is generally not covered by those insuring titles because it is virgin property without a chain of title.

(C) Accreted land generally belongs to the state.

(D) Accreted land is not considered real property before the law.

Solution: Aside from the difficulty of establishing the ownership of accretion land, title insurance companies consistently except such land from their policies because the history of the ownership of such virgin land is usually not yet a matter of record.

Answer is (B)

129. If Mr. Clark had been able to establish that the road in question had not always followed the same route over the 10 years during the running of the statute, might the court have found in his favor?

(A) Yes, the road must have a definite and consistent route for a prescriptive right to ripen.

(B) No, since the public merely acquired the right to travel across the accretion land, the exact path is not critical.

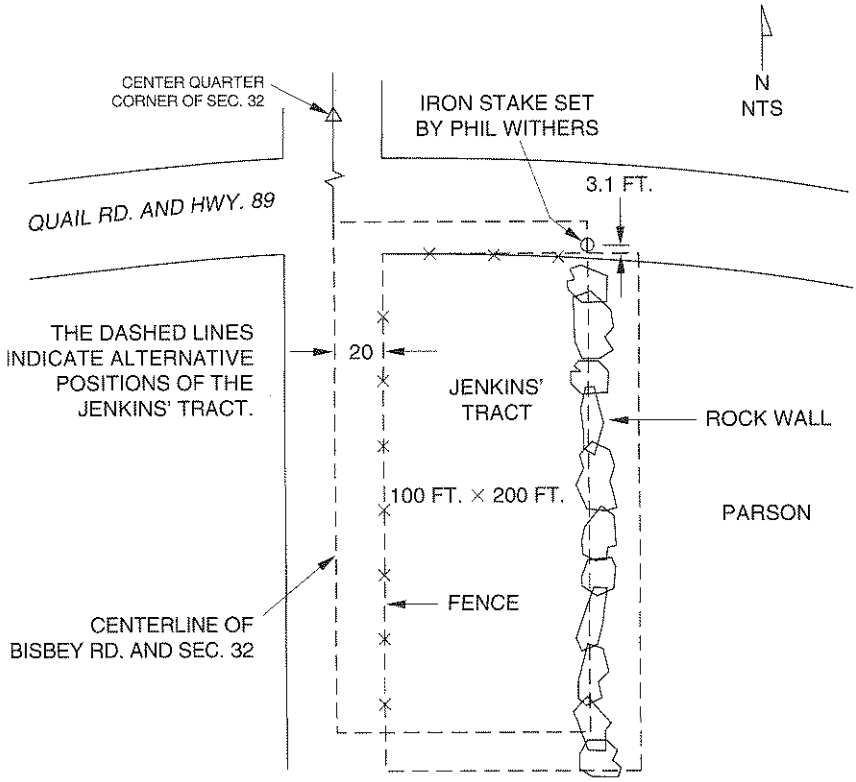
(C) Yes, the roadway must have a definite and consistent route that is maintained at public expense and improved to a level equal with the other streets and roads in the municipality for the prescriptive right to ripen.

(D) No, the municipality could have rerouted the roadway any number of times. As long as it was maintained at public expense, the statute would have continued to run.

Solution: If Mr. Clark had successfully shown that the roadway took different routes at different times during the running of the statute, the municipality would likely have lost its case. The location of a roadway must remain consistent for the prescriptive right to ripen.

Answer is (A)

The following five problems refer to the illustration shown and the accompanying narrative.



The appellants in this action are the Jenkins; the appellees are the Parsons.

This appeal involves a decree that determined the boundaries of a 100 ft by 200 ft tract of land conveyed to the appellants' grantors, the Kings, by the appellees, the Parsons. The Parsons sold the tract in question to Jack and Jean King in June 1966. The Kings conveyed the same land to the Jenkins by a deed dated May 1968. The particular description in both deeds is as follows.

> Beginning at a point on Quail Road (now State Highway 89) 9 rods south of the center of Section 32, T19S, R34W; thence south along Bisbey Road 200 ft; thence east 100 ft; thence north 200 ft parallel with the centerline of said Section 32 to said Quail Road, also known as Highway 89; thence west along the right-of-way of said Quail Road 100 ft to the place of beginning.

The Parsons retained the land to the east and south of the described tract.

The appellants contend that the issue on appeal is the correct location of the lot described. The question hinges on whether the lot includes any part of the roads. Mrs. Parson instituted the original action, contending that about 20 ft of the lot lies in Bisbey Road. The appellants assert that it was the intention of all the parties involved to convey a lot 200 ft long by 100 ft wide without easements or encroachments.

After hearing the arguments, the court found that the northeast corner of the appellants' lot was correctly marked by an iron stake set by Phil Withers in 1966. The iron stake was described in the decree as being on the south right-of-way line of Quail Road, approximately 100 ft east from a point on the centerline of Bisbey Road. The northwest corner of the property was described in the decree as being in Bisbey Road, approximately 348.5 ft south of the center of Section 32. The decree further stated that the east boundary of the appellants' lot ran south from the iron stake 200 ft along a rock wall, grapevines, and other vegetation, parallel with the centerline of Section 32. The south line of the appellants' lot was described in the decree as proceeding west from a point 200 ft south of the iron stake to the centerline of the section, which is also the centerline of Bisbey Road.

The Jenkins appealed the decision. The appellants asserted that the court's decree was incorrect because it did not give effect to the Parsons' intention in their original conveyance of the parcel, because it was based on hearsay evidence, because certain distances were described by the court as being approximate, and because it did not describe the boundary with such certainty that it could be located.

In her testimony, Mrs. Parson steadfastly maintained that her husband had caused a survey to be made by Phil Withers, now deceased, as the basis of their conveyance of the lot in question to the Kings. The survey was not recorded. She identified the iron stake that was 100 ft east of the centerline of Section 32 and 3.1 ft north of the south right-of-way line of Highway 89 as one placed by Withers. Under cross-examination, she admitted she had been in the hospital at the time Withers made the survey.

The appellants offered testimony from another surveyor, Mr. Landers. The point of disagreement was the location of the west line of the Kings', now the Jenkins', lot. Mrs. Parson testified that Withers located it in Bisbey Road, so that about 20 ft of the road would be included in the Jenkins' lot. Landers, the Jenkins' surveyor, assumed that the west boundary of the Jenkins' lot was marked by the fence on the east border of Bisbey Road. Landers also presumed that the north boundary of the Jenkins' lot was marked by the southerly right-of-way fence of Highway 89, also known as Quail Road.

Landers testified that in order to connect the northwest corner of the Jenkins' lot (as he construed it) to the center of Section 32, one would have to proceed on a bearing of N07°40′W for a distance of 149.9 ft. Landers also testified that the iron stake was approximately 20 ft west and 3.1 ft north of the northeast corner of the Jenkins' lot as he located it. Landers admitted that if he had proceeded due south from the center of Section 32, he would have gone down the center of Bisbey Road. The reason he varied from this course was that he interpreted the word *along* in the deed to mean that the line, in both cases, ran on the edges of the roads.

Mr. Jenkin testified that he had built the rock wall as a retaining wall to fill his yard, not to mark the boundary of his property. Jenkin said he had no clear idea of the proper location of the eastern boundary of his property at the time. He admitted that the iron stake was in line with the rock wall, but testified that he had no idea why it was there.

Ruth Riesen, who had lived in sight of the Jenkins' lot since 1936, testified that the Jenkins had replaced a fence of long standing with their rock wall. Edith Stander, who lived slightly more than a quarter mile from the Jenkins' property, testified that the Parsons had built a fence on the east line of the lot at the time they conveyed the property to the Kings.

The appellants placed great reliance on the location of the fence on the eastern edge of Bisbey Road and on the fence along the south right-of-way of Highway 89 when they bought the property. No one told them the fences marked the west and north lines of the lot, but the Jenkins presumed this to be the case.

130. The appellants, the Jenkins, asserted that one of the errors made by the original trial court was its acceptance of hearsay testimony regarding the location of the boundaries of their lot. What testimony would be considered hearsay?

(A) Mrs. Parson's testimony regarding the Withers survey
(B) Mrs. Riesen's testimony regarding the replacement of a fence with the Jenkins' rock wall
(C) Mr. Jenkin's testimony about the building of the rock wall
(D) Landers' testimony that he found an iron stake 20 ft west of his determination of the east line of the lot

Solution: Hearsay evidence is a statement that is made by someone other than the person testifying, but is recounted by a witness as evidence to prove the truth of an assertion. In the absence of a recorded survey, Mrs. Parson's account of the placement of the iron stake could be considered hearsay since she was in the hospital at the time.

Answer is (A)

131. There appears to be a discrepancy concerning the distance from the center of Section 32 along the centerline of the section to the northwest corner of the Jenkins' lot. In which of the pairs of distances are contradictory values given for this dimension?

(A) 9 rods and 148.5 ft
(B) 148.5 ft and 149.9 ft
(C) 348.5 ft and 9 rods
(D) 9 rods and 149.9 ft

Solution: The distance of 9 rods, or 148.5 ft, is given in the deed description of the property and is contradicted by the distance of 348.5 ft stipulated in the original court's decree. The distance of 149.9 ft was not measured along the centerline of Section 32.

Answer is (C)

132. The appellants contended in their appeal that the original court's decree did not describe their boundary with such certainty that it could be located. What are some of the elements of that decree that might have reasonably been considered to contribute to uncertainty of location?

(A) The iron stake was described in the decree as being on the south right-of-way line of Quail Road.
(B) The iron stake was described in the decree as being approximately 100 ft east from a point on the centerline of Bisbey Road.
(C) The northwest corner of the property was described in the decree as being in Bisbey Road, approximately 348.5 ft south of the center of Section 32.
(D) Both A and C are true.

Solution: The iron stake was not found to be on the south right-of-way line of Quail Road, but 3.1 ft north of it. The distance of 348.5 ft is more nearly the distance from the center of Section 32 to the southwest corner of the Jenkins' lot. However, the iron stake can be said to be approximately 100 ft east of the centerline of Bisbey Road.

Answer is (D)

133. Which of the following questions is pertinent in considering whether the iron stake stands at the northeast corner of the Jenkins' lot?

(A) Does the state have an easement or a fee interest in the right-of-way of Highway 89?

(B) Does the word *along* indicate the centerline of the roads in the description?

(C) Did Withers set the iron stake during his survey of the property in preparation for its conveyance from the Parsons to the Kings?

(D) All of the above are pertinent.

Solution: The questions each raise significant aspects of the location of the northeast corner of the Jenkins' property. If the state holds a fee interest in Highway 89, the Parsons could not sell what they did not own. The location of the northeast corner is dependent on whether the western boundary of the lot is along the centerline of Bisbey Road. The placement of the iron stake by Withers as the basis for the conveyance would give it great significance, even though the stake is not called for in the deed description.

Answer is (D)

134. What is the proper interpretation of the word *along* as used in the deed description of the Jenkins' lot?

(A) Along means with the centerlines of the roads.

(B) Along means along the edge or boundary of the roads.

(C) Along most often is understood to mean along the centerline of a road; however, this is a rebuttable presumption.

(D) Along most often is understood to mean along the edge or boundary of a road; however, this is a rebuttable presumption.

Solution: The usual meaning of the word *along*, as used in deed descriptions, carries the boundary to the centerline of the strip of land. However, the context cannot be ignored. Here, the evidence of the iron stake and the fence, which was reconstructed as a rock wall along the eastern boundary of the Jenkins' lot, indicates a different meaning of the word.

The phrase "thence west along the right-of-way of said Quail Road 100 ft to the place of beginning" means that the boundary is coincident with the southern right-of-way line of Quail Road, not its centerline. This meaning is supported by Withers' iron stake and the fact that the place of beginning is on the southern right-of-way line of Quail Road.

On the other hand, the phrase "thence south along Bisbey Road 200 ft" means that the boundary is the centerline of Bisbey Road. This meaning is supported by the fence at the eastern boundary of the Jenkins' lot that was rebuilt as a rock wall and is further supported by the iron stake set by Withers.

Answer is (C)